Ampol – EG Australia

MN-01019

Phase 2 Determination

Acquisition may be put into effect with conditions

Statement of Reasons

2 June 2026

Contents

1. Summary

1.1. On 10 October 2025, Ampol Limited lodged a notification in respect of Ampol Retail Holding Pty Ltd’s proposed acquisition of 100% of the share capital in EG Group Australia Pty Ltd and EG AsiaPac Holdings Limited (the **Acquisition**) with the Australian Competition and Consumer Commission (**ACCC**).

1.2. On 20 January 2026, the ACCC decided the Acquisition would be subject to a Phase 2 review and subsequently issued a Notice of Competition Concerns (**NOCC**) to Ampol on 27 February 2026 and published a summary of the NOCC on the Acquisitions Register on 2 March 2026.

1.3. Ampol and EG Australia are both retail suppliers of fuel, including petrol and diesel, and convenience products in all Australian states and territories. Ampol owns and operates 576 sites under the Ampol brand, and 46 under the U-GO brand. EG Australia owns and operates 512 retail sites.

1.4. The ACCC considered the likely competitive effects of the Acquisition in the following markets:

- The retail supply of petrol and diesel in local markets in which Ampol and EG Australia both have retail sites.
- The retail supply of petrol and diesel in metropolitan-wide markets of Adelaide, Brisbane, Canberra, Melbourne, Perth and Sydney.

1.5. Based on the material before it, the ACCC is satisfied that, disregarding any conditions the Acquisition could, in all the circumstances, have the effect of substantially lessening competition as a result of horizontal unilateral effects in 39 local markets.

1.6. In each of the 39 local markets:

- The Acquisition would remove a direct and significant competitor to Ampol and thereby remove the competitive constraint that the Parties currently exert on each other, having regard to geographic proximity and local market conditions.
- Post-acquisition, consumers may not consider remaining competitors in local markets to be sufficiently close substitutes due to differences in non-fuel offerings, site facilities, and location, such that those competitors provide a less effective competitive constraint on Ampol.
- The Acquisition would substantially increase concentration.
- Barriers to entry are high, such that rival fuel retailers are unlikely to be able to enter quickly and at relatively low cost.

1.7. The ACCC has determined under sections 51ABZE(1) of the Act that the Acquisition may be put into effect, subject to conditions. The conditions are:

a) Ampol Limited (ACN 004 201 307) must divest the Divestiture Business by the end of the Initial Sale Period.

b) Ampol Limited (ACN 004 201 307) must give an executed undertaking in the form at Attachment B of the Determination to the ACCC no later than 5 business days from the date of this Determination for the purposes of section 87B of the Act and comply with that undertaking.

(together, the **Conditions**)

1.8. The defined terms Divestiture Business and Initial Sale Period are as defined in the section 87B undertaking that Ampol Limited (ACN 004 201 307) must give and comply with pursuant to the Conditions.

1.9. The objective of the Conditions is to address the competition issues identified in 39 local markets through divestiture of 41 retail fuel sites to an ACCC-approved purchaser. The ACCC has approved Dib Group (Metro Petroleum) as purchaser.

1.10. In 25 of the 39 local markets, the Conditions remove the competitive overlap between Ampol and EG Australia. The Conditions also facilitate the entry or expansion of a competitor into these local markets, preserving choice for consumers and addressing the impact of the Acquisition on competition. In the other 14 markets, where Ampol will have multiple sites, the Conditions reduce Ampol's post-acquisition share and divestiture to the purchaser approved by the ACCC would facilitate the entry or expansion of an independent retailer.

1.11. The ACCC identified competition concerns in the retail supply of petrol in the metropolitan markets of Brisbane, Canberra, Melbourne, and Sydney. In any case, the Conditions reduce the extent of aggregation brought about by the Acquisition in these metropolitan markets and divestiture to the purchaser approved by the ACCC would facilitate the expansion of an independent retailer.

2. Background

The acquirer – Ampol

2.1. Ampol Retail Holding Pty Ltd is a wholly-owned subsidiary of Ampol Limited (**Ampol**), which is listed on the ASX. Ampol is a vertically integrated fuel company with upstream fuel production and importing assets, wholesale supply and distribution facilities and a network of retail fuel and convenience sites across Australia.

2.2. Ampol owns the Lytton refinery in Brisbane, Queensland, where it refines imported crude oil, and a number of terminals nationwide through which it imports finished products from overseas refineries and trading houses.[1]

2.3. Ampol operates retail sites under both the Ampol brand and the U-GO brand. Ampol branded sites are full-service sites with fuel and convenience offerings. Launched in 2023, the U-GO branded sites are low cost, unstaffed self-service sites selling only

[1] Ampol, 'Who we are', accessed 29 May 2026; Ampol notification submitted on 10 October 2025, Appendix B to Final Long Form Notification, pp 29-31.

fuel with no convenience offering. Ampol owns and operates 576 sites under the Ampol brand, and 46 under the U-GO brand.

2.4. Ampol also has 50% shareholding and associated voting rights in the following two fuel distributors and retailers:

- Bonney Energy Group Pty Ltd (**Bonney Energy**) is a distributor of Ampol fuel. Bonney Energy operates 45 retail fuel sites across regional Victoria and Tasmania under the Ampol brand.[2]

- Geraldton Fuel Company Pty Ltd (trading as **Refuel Australia**) is a fuel distributor operating in Western Australia and the Northern Territory. Twenty-eight of Refuel Australia's 38 locations operate under the Ampol brand.[3]

The target – EG Australia

2.5. EG Group Australia Pty Ltd and EG AsiaPac Holdings Limited are the entities that carry on EG Group's business in Australia (together, **EG Australia**), which operates a network of retail fuel and convenience sites across Australia. EG Australia is owned by EG Group, a UK-based independent fuel and convenience retailer with sites across Europe and North America.

2.6. EG Australia commenced operations in Australia in April 2019 when EG Group acquired all 540 of Woolworths' retail fuel and convenience sites.[4] EG Australia currently owns and operates 512 retail fuel sites.[5]

Relationship between the Parties

2.7. Ampol and EG Australia (together, the **Parties**) have a fuel supply agreement (**FSA**) whereby Ampol is EG Australia's exclusive wholesale supplier of fuel until 2033. Pursuant to the FSA and other agreements which were novated from Woolworths to EG Group in 2019:[6]

- EG Australia's retail fuel sites must carry the 'Ampol' brand, while its convenience stores carry the 'EG' brand.
- EG Australia is required to accept and process payments by customers who pay with Ampol Australia card and payment services.

The Acquisition

2.8. Ampol proposes to acquire 100% of the share capital in EG Australia for $1.1 billion.

[2] Ampol notification submitted on 10 October 2025, Final Long Form Notification, p 21.

[3] Ampol notification submitted on 10 October 2025, Final Long Form Notification, p 22.

[4] EG Group, 'EG Group Announce binding agreement for the purchase of Woolworths' Petrol Business in Australia', 9 November 2018, accessed on 9 May 2026.

[5] Ampol notification submitted on 10 October 2025, Final Long Form Notification, p 4.

[6] Ampol notification submitted on 10 October 2025, Final Long Form Notification, p 10.

2.9. Ampol states that the Acquisition will enable it to expand its national footprint (to 1,134 sites) and accelerate Ampol's retail growth strategy through segmented offers.[7]

2.10. Additionally, a key stated rationale for the Acquisition is to accelerate the rollout of U-GO sites. In particular, Ampol states that it would progressively convert 125 EG Australia sites to U-GO sites over a 2 year period (with the remainder to be rebranded as Ampol sites).[8] Ampol currently has 46 U-GO sites and plans to convert 14 additional Ampol sites by the end of 2026.[9] Taken together, Ampol would have close to 200 U-GO sites in 2 to 3 years' time should the Acquisition be put into effect.[10]

2.11. Ampol also submits that following the Acquisition, it will continue and expand its retail convenience and shopper docket discount arrangement that Woolworths currently has with the EG Australia site network.[11] Ampol has agreed with Woolworths to increase the number of Ampol retail owned and operated retail sites that participate in the shopper docket discount **[Redacted – Confidential]**.[12] This will be in addition to the 200 Ampol owned and operated retail sites that already participate in the shopper docket discount program.[13]

2.12. EG Group has stated that it is seeking to exit the Australian market via the Acquisition, with the proceeds from the sale to be used to reduce EG Group's debt and focus on global markets where it sees growth opportunities.[14]

2.13. Ampol has considered **[Redacted – Confidential]**[15] **[Redacted – Confidential]**.[16] Based on the evidence before the ACCC, the ACCC has taken this to mean that the Acquisition would **[Redacted – Confidential]**.

2.14. In addition, evidence suggests that one of the drivers of the Acquisition is **[Redacted – Confidential]**.[17]

2.15. Although Ampol documents **[Redacted – Confidential]**[18] **[Redacted – Confidential].**[19] **[Redacted – Confidential]**.

Industry background

2.16. Australia's fuel industry consists of three broad levels: the import of refined fuel and the domestic refining of crude oil (suppliers), the sale or resale and distribution of

[7] Ampol, 'ASX Release – Proposed acquisition of EG Australia', 14 August 2025, accessed on 13 May 2026, p 4.

[8] Ampol, 'ASX Release – Proposed acquisition of EG Australia', 14 August 2025, accessed on 13 May 2026, pp 5, 6 and 9.

[9] Ampol, 'ASX Release – Proposed acquisition of EG Australia', 14 August 2025, accessed on 13 May 2026, p 9; **[Redacted – Confidential]**.

[10] Ampol, 'ASX Release – Proposed acquisition of EG Australia', 14 August 2025, p 9. **[Redacted – Confidential]**.

[11] Ampol notification submitted on 10 October 2025, Appendix A to Final Long Form Notification, p 18.

[12] Ampol notification submitted on 10 October 2025, Appendix A to Final Long Form Notification, p 18.

[13] Ampol notification submitted on 10 October 2025, Appendix A to Final Long Form Notification, p 18.

[14] EG Group, 'EG Group Agrees Sale of its Australian Business', 14 August 2025, accessed on 13 May 2026.

[15] See Supreme Court of NSW – Case Number 2020/00357215; Federal Court of Australia – File Number NSD877/2021; Ampol, ASX Release: Resolution of Legal Dispute Between Ampol and EG, Enabling Ampol Brand Rollout at EG Sites to Commence, 1 April 2022; **[Redacted – Confidential]**.

[16] **[Redacted – Confidential]**.

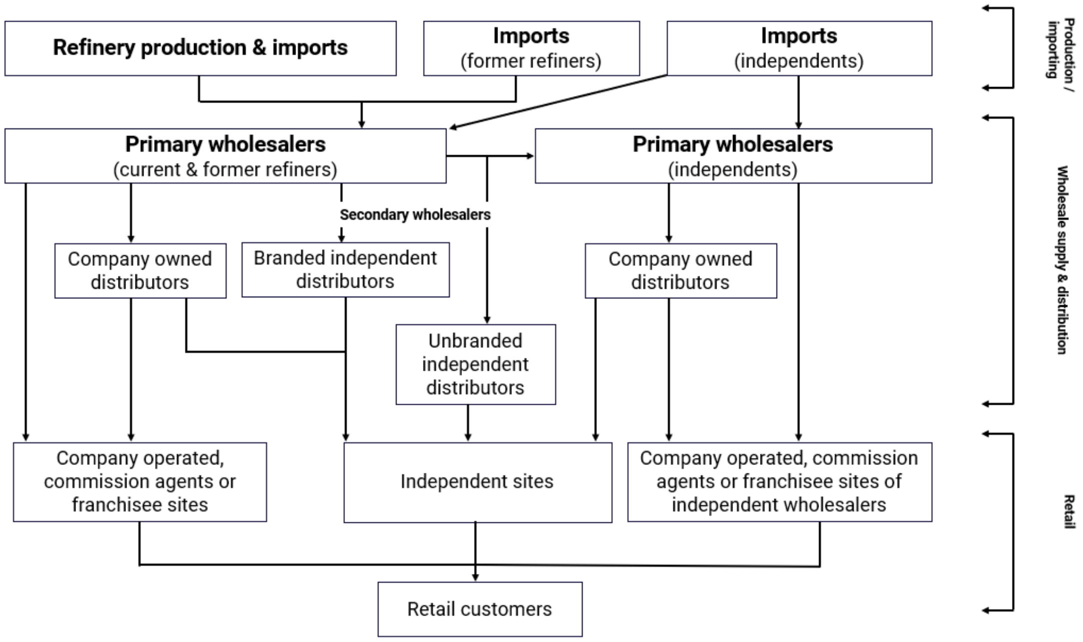
[17] **[Redacted – Confidential]**.

[18] **[Redacted – Confidential]**.

[19] **[Redacted – Confidential]**.

wholesale fuel (primary and secondary wholesalers), and retail supply. This structure is depicted at Figure 1 below.

Figure 1. Fuel industry structure



Wholesale supply and impact on retail competition

2.17. Australia has two domestic oil refineries, Viva Energy's Geelong refinery in Victoria and Ampol's Lytton refinery in Queensland.[20] Some industry participants are vertically integrated with refinery operations in the Asia-Pacific region. For example, Chevron has interests in refineries in South Korea, Thailand and Singapore, which are sources of refined product for some retailers in Australia.[21]

2.18. Over 90% of the refined petroleum products consumed in Australia are imported from overseas.[22] Import terminals receive refined petroleum products by ship and store them before they are distributed to various customers, including fuel retailers. A number of industry participants import finished products into Australia from overseas, including Ampol, BP, Chevron, ExxonMobil, United Petroleum, Viva Energy, IOR, PetroChina and Freedom Fuels.

2.19. Refiners and many importers supply fuel to secondary wholesalers or directly to fuel retailers on a wholesale basis. Currently, the four major wholesalers of petrol in Australia are Ampol, BP, ExxonMobil and Viva Energy.[23] In 2023-24, these major wholesalers accounted for around 85% of the total wholesale volumes captured by the ACCC's monitoring program.[24] Other large wholesalers like Chevron and United

[20] Ampol notification submitted on 10 October 2025, Final Long Form Notification, pp 19 and 24.

[21] Chevron, 'What we do – energy – refining', accessed 29 May 2026; ACCC, 'Market composition through Australia's evolving petroleum industry', 11 November 2025, p 5.

[22] Australian Institute of Petroleum authorisation application lodged with the ACCC on 18 March 2026, 'Authorisations register: Australian Institute of Petroleum and Ors', p 7.

[23] ACCC, 'Market composition through Australia's evolving petroleum industry', 11 November 2025, p 12.

[24] ACCC, 'Market composition through Australia's evolving petroleum industry', 11 November 2025, p 12.

Petroleum accounted for most of the remaining monitored wholesale volumes, together with Liberty until it was fully acquired by Viva Energy.[25]

2.20. Fuel retailers typically acquire fuel from wholesale suppliers under contract, with pricing tied to an international wholesale benchmark, or on the spot market, though some retailers may rely on a mix of contracted supply and spot purchases.[26] Australian wholesale fuel prices are closely linked to the Singapore market price for fuel as it is the closest major refining and marketing centre to Australia and thus is a common source of imported petrol.[27] It is also common for primary wholesalers to buy fuel products from each other through reciprocal buy-sell arrangements in locations where they do not own refineries or have the infrastructure to import fuel directly.[28]

2.21. As indicated above, Ampol is one of the four major wholesalers in Australia. EG Australia accounts for **[Redacted – Confidential]** of Ampol's total wholesale supply volumes, whereas other competitor fuel retailers represent **[Redacted – Confidential]** combined, highlighting the importance of EG Australia to Ampol's wholesale business.[29]

Relevant fuel industry trends in Australia

Fuel demand

2.22. Fuel retailers typically supply the following three key types of fuel products:[30]

- regular unleaded petrol (91 octane grade) (**RULP**) or E10
- premium unleaded petrol (**PULP**), typically 95 or 98 octane grades[31]
- diesel, typically regular or premium grades.

2.23. Since 2016, petrol volumes sold by Australian fuel retailers have declined by approximately 12%.[32] National statistics published by the Department of Climate Change, Energy, the Environment and Water (**DCCEEW**) show a long-run decline in RULP consumption over time. Volumes of E10 and 95 RON petrol have remained relatively stable, whereas 98 RON volumes have increased.[33] There are, however, regional variations in petrol grade consumption. For example, in NSW/ACT, combined

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25 ACCC, 'Market composition through Australia's evolving petroleum industry', 11 November 2025, p 12.

26 ACCC, 'Making the most of fuel apps and websites', 20 August 2024, p 38; Australian Institute of Petroleum, 'Facts about the Australian Wholesale Fuel Market & Prices', August 2021, p 5.

27 Australian Institute of Petroleum, 'Facts about the Australian Wholesale Fuels Market & Prices', December 2021, p 1.

28 Ampol notification submitted on 10 October 2025, Final Long Form Notification, pp 34-35; ACCC, 'Market composition through Australia's evolving petroleum industry', 11 November 2025, p 2; Australian Institute of Petroleum, 'Facts about the Australian Wholesale Fuels Market & Prices', December 2021, p 5.

29 Ampol notification submitted on 10 October 2025, Final Long Form Notification, p 24.

30 Liquefied petroleum gas (or LPG) is also sold by some retailers. However, as of 31 January 2025, LPG and 'dual fuel' powered vehicles represented less than 1% of all registered vehicles in Australia. ACCC, 'Quarterly report on the Australian petroleum market – December quarter 2025', 6 March 2026, p 45.

31 In Australia, premium petrol consists of unleaded petrol with a higher Research Octane Number (**RON**) than RULP (91 RON), specifically 95 RON or 98 RON, as recognised by the ACCC. These grades differ by octane rating, with 95 RON and 98 RON providing higher performance and cleaner burning than 91 RON.

32 In 2016 collective petrol sales volumes were approximately 18 billion litres, compared with 2025 where collective petrol sales volumes were approximately 15.8 billion. DCCEEW, 'Australian Petroleum Statistics – Data Extract December 2025'.

33 DCCEEW, 'Australian Petroleum Statistics – Data Extract December 2025'.

sales of premium 95 RON and 98 RON petrol are higher than RULP while RULP continues to be the most popular petrol grade in other states.[34]

2.24. Also, since 2016, national diesel volumes sold by fuel retailers have increased. Fuel retailers collectively sold approximately 8.7 billion litres of diesel in 2016 and approximately 10.5 billion litres in 2025, representing an increase of 21%.[35] According to the Australian Institute of Petroleum (**AIP**), around 25% of total diesel sales in Australia are sold through retail fuel outlets, with the remainder sold directly in bulk to commercial or industrial users through long term contracts.[36]

2.25. Petrol and diesel remain the dominant fuel sources for vehicles in Australia. Petrol-powered motor vehicles and diesel-fuelled motor vehicles account for approximately 66% and 29% of Australian vehicles respectively in 2025.[37] However, there has been a steady rise in demand for electric vehicles,[38] encouraged by government targets to reduce greenhouse gas emissions[39] and policies,[40] which will impact demand for fuel over the long term.

Retail competition

Composition of retail fuel markets

2.26. Australia's downstream retail supply has evolved over the past decade with market consolidation through acquisitions, expansion by several retailers and other retail brands opening in Australia. The net result of these changes is that the number of retail sites increased from around 7,500 in 2018 to over 8,000 in 2026.[41]

2.27. Fuel retailers in Australia have varied business models and structures. They can be broadly categorised as follows:

- larger, national, vertically integrated retailers: Ampol, Viva Energy (including the Reddy Express, On The Run and Liberty retail networks), BP, Chevron (operating under the Caltex and Puma Energy retail brands)[42] and United Petroleum (**major retailers**)

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34 DCCEEW, 'Australian Petroleum Statistics – Data Extract December 2025'.

35 DCCEEW, 'Australian Petroleum Statistics – Data Extract December 2025'.

36 AIP, 'Facts about diesel prices and the Australian fuel market', 2024, p 3.

37 Bureau of Infrastructure and Transport Research Economics, 'Road vehicles Australia, January 2025', September 2025, p 9; Australian Automobile Association, 'Electric Vehicle Index, Section 2: New vehicle sales by fuel type over time', Q1 2026, accessed on 13 May 2026.

38 Australian Automobile Association, 'Electric Vehicle Index, Section 2: New vehicle sales by fuel type over time', Q1 2026, accessed on 13 May 2026.

39 DCCEW, 'Net Zero', 25 November 2025, accessed on 13 May 2026.

40 Examples of these policies include the fringe benefits tax exemption for EV purchases, the removal of the 5% import tariff on eligible electric vehicles, the new vehicle efficiency standard and state-based subsidies or rebates. Australian Taxation Office, 'Electric cars exemption', 1 April 2026, accessed on 13 May 2026; Federal Chamber of Automotive Industries, 'Statement on EU free trade agreement', 24 March 2026, accessed on 13 May 2026; Department of Infrastructure, Transport, Regional Development, Communications, Sport and the Arts, 'New Vehicle Efficiency Standard: Information for Industry', accessed on 13 May 2026.

41 ACCC, 'Market composition through Australia's evolving petroleum industry', 11 November 2025, p 7.

42 Apart from ownership of import terminals, Chevron has upstream oil and gas interests in Western Australia and has non-operated joint venture refineries in the Asia-Pacific region, including South Korea, Thailand and Singapore. Chevron, 'What we do – energy – refining', accessed 17 February 2026. See also ACCC, 'Market composition through Australia's evolving petroleum industry', 11 November 2025, p 5.

- larger, national independent retailers with a branded fuel supplier: EG Australia and 7 Eleven[43] (**major independent retailers**)
- smaller independent retailers, such as Speedway, Metro Petroleum, Freedom Fuels, Budget, Vibe, and Pearl Energy (**small independent retailers**)[44]
- dealers under the national branded retailers (independently priced sites branded BP, Shell, Ampol etc).

2.28. While major retailers and major independent retailers (together, the **majors**) continue to account for the majority of fuel sales, the aggregated share of national petrol sales volumes of the small independent retailers has gradually increased over time, from 18% in 2017-18 to around 26% in 2023-24.[45] ACCC estimates indicate that small independent retailers have a greater presence in Adelaide, Melbourne, Perth and Sydney than in Brisbane and Canberra.

Price and non-price competition between fuel retailers

2.29. While the majors and small independent retailers compete with each other in the retail supply of fuel, the ACCC considers that Ampol competes more closely with EG Australia and the other majors than with small independent retailers.

2.30. Ampol submits that Ampol competes with all fuel retailers throughout a city, particularly as retailers are all selling the same products in a similar format and market to the same customers.[46]

2.31. The ACCC accepts that the fuel products supplied by retailers are near-homogenous, such that price is a key component of competition. However, fuel retailers also compete by differentiating themselves with respect to a range of other (non-price) attributes and offerings. These include:

- non-fuel offerings: majors typically have a larger range of convenience products and services compared with small independent retailers.[47]
- scale of presence / location: majors tend to have a large footprint of sites across Australia whereas small independent retailers tend to have a smaller scale in cities and typically are not present in all states/territories. In terms of locations, majors have a stronger presence on main roads and motorways whereas independents tend to use pricing to attract users off main roads.
- brand awareness and brand perception: due to their large, national presence, majors tend to have significant brand awareness across metropolitan cities, attracting consumers familiar with their fuel and non-fuel offering.[48] Majors also target a broader set of customers, including as corporate customers, who avail themselves of fuel card offerings. Notwithstanding these aspects, the ACCC recognises that independents with a large network in a specific region or local area may compete closely with majors.[49]

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43 7-Eleven does not operate in the Northern Territory, South Australia or Tasmania.

44 A number of these retailers also have independently priced dealers or franchisees.

45 ACCC, 'Market composition through Australia's evolving petroleum industry', 11 November 2025, pp 17-18.

46 **[Redacted – Confidential]**.

47 ACCC, 'Market composition through Australia's evolving petroleum industry', 11 November 2025, p 25; **[Redacted – Confidential]**.

48 **[Redacted – Confidential]**.

49 For example, **[Redacted – Confidential]**.

2.32. The evidence on the price and non-price factors set out above shows that majors tend to compete more closely with each other than with smaller independent retailers. This is also supported by:

- ACCC analysis of Informed Sources data which suggests majors tend to charge higher average prices compared with small independent retailers.[50] **[Redacted – Confidential]**.[51] Lower pricing by small independent retailers is enabled by having lower costs, including potentially lower costs of sourcing fuel and a smaller convenience offering;[52]
- **[Redacted – Confidential]**:
  - **[Redacted – Confidential]**.[53]
  - **[Redacted – Confidential]**.[54]

Petrol price cycles

2.33. As the ACCC's ongoing monitoring of fuel markets has found, Australian fuel prices are typically influenced by international benchmark crude oil and refined fuel prices and the value of the Australian dollar, as well as the levels of competition in different locations.[55]

2.34. In the major cities such as Sydney, Melbourne, Brisbane, Adelaide and Perth, petrol prices move up and down across the city in regular patterns. These patterns are known as petrol price cycles.[56] Smaller cities such as Canberra, Hobart and Darwin and most regional areas do not have petrol price cycles.

2.35. Petrol price cycles are a prominent and longstanding feature of retail petrol prices in Australia's 5 largest cities. At the time of making this determination, petrol price cycles in Sydney, Melbourne, Brisbane and Adelaide appear to have been disrupted due to the conflict in the Middle East.

2.36. Petrol price cycles are not driven by movements in wholesale prices or underlying costs and not all retailers participate in price cycles. Price cycles do not occur for retail diesel and automotive LPG prices. Typically in a price cycle, prices increase sharply, then decrease more gradually over a longer period before the process repeats. Not all retail sites in a city change prices at the same time, meaning average metropolitan-wide prices can take time to increase (and decrease).[57]

2.37. Average prices across a city move up and down across two phases.[58] The ACCC has made the following observations regarding these phases:[59]

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50 See paragraph 5.46 below.

51 **[Redacted – Confidential]**.

52 **[Redacted – Confidential]**.

53 **[Redacted – Confidential]**.

54 **[Redacted – Confidential]**.

55 ACCC, 'What affects fuel prices', accessed on 4 May 2026.

56 See ACCC discussion of price cycles, 'Petrol price cycles in the 5 largest cities', accessed on 17 February 2026.

57 ACCC, 'Quarterly report on the Australian petroleum market – September quarter 2025', 10 December 2025, p 10.

58 See ACCC discussion of price cycles, 'Petrol price cycles in the 5 largest cities', accessed on 17 February 2026; ACCC, 'Making the most of fuel apps and websites', 20 August 2024, p 37; **[Redacted – Confidential]**.

59 ACCC, 'Making the most of fuel apps and websites', 20 August 2024, p 40.

- In the increase phase, various retailers generally increase prices substantially across all or most of their sites to the same or a similar price point across different locations within a city. The ACCC has observed some retailers increasing prices to varying levels, including levels below the highest priced retailer.
- In the decrease phase, retailers tend to more gradually match and undercut their rivals' pricing on a site-by-site basis until prices begin to approach terminal gate prices (indicative of wholesale costs of petrol), such that margins are significantly reduced. At this point, one or more retailers will tend to increase their prices substantially such that the cycle repeats.

2.38. The ACCC has also observed differences in petrol price cycle patterns in Australia's largest cities over time. For example, in September 2025, cycles in Sydney were around 5 and a half weeks in duration while in Melbourne they were around 6 and a half weeks and in Brisbane around 7 weeks.[60] Previously, in 2018, the ACCC observed that cycles in the same three cities were about a month long.[61]

3. Overlap and relevant areas of competition

Overlap

3.1. The Parties are both retail suppliers of fuel and convenience products in all Australian states and territories. Currently:

- Ampol owns and operates 576 sites under the Ampol brand and 46 under the U-GO brand.[62]
- EG Australia owns and operates 512 retail fuel sites.

3.2. Acquiring EG Australia's sites would make Ampol the largest fuel retailer in Australia in terms of number of sites.

3.3. Ampol recorded $**[Redacted – Confidential]** and $**[Redacted – Confidential]** in revenue from supplying **[Redacted – Confidential]** and **[Redacted – Confidential]** litres of retail fuel in FY24 and 1H FY25 respectively. EG Australia recorded $**[Redacted – Confidential]** and $**[Redacted – Confidential]** in revenue from supplying **[Redacted – Confidential]** and **[Redacted – Confidential]** litres of retail fuel across the same period.[63] Table 1 below sets out the Parties' 2025 sales volumes by fuel type.

Table 1. Ampol and EG Australia 2025 retail sales volumes[64]

2025 sales volumes	Ampol		EG Australia	
	Litres	Percentage of total	Litres	Percentage of total

[60] ACCC, 'Quarterly report on the Australian petroleum market – September quarter 2025', 10 December 2025, p 11.

[61] ACCC, 'Making the most of fuel apps and websites', 20 August 2024, p 43.

[62] Ampol conducts its fuel and retail convenience operations in Australia largely through its wholly-owned subsidiary Ampol Australia Petroleum Pty Limited (**Ampol Australia**). **[Redacted – Confidential]**.

[63] Ampol notification submitted on 10 October 2025, Attachment 20 to Final Long Form Notification; Ampol notification submitted on 10 October 2025, Attachment EG2 to Final Long Form Notification.

[64] **[Redacted – Confidential]**.

Diesel	**[Redacted – Confidential]**	**[Redacted – Confidential]**	**[Redacted – Confidential]**	**[Redacted – Confidential]**
RULP/E10	**[Redacted – Confidential]**	**[Redacted – Confidential]**	**[Redacted – Confidential]**	**[Redacted – Confidential]**
PULP	**[Redacted – Confidential]**	**[Redacted – Confidential]**	**[Redacted – Confidential]**	**[Redacted – Confidential]**
Total	**[Redacted – Confidential]**		**[Redacted – Confidential]**	

3.4. The Parties also overlap in convenience grocery retailing co-located at fuel sites across Australia. However, the ACCC concluded that the Acquisition is unlikely to result in a substantial lessening of competition in the retail supply of groceries given the remaining constraints on Ampol post-acquisition. Nevertheless, the Parties' convenience offerings contribute to them competing more closely with one another and with other major retailers, than with small independent retailers (see paragraph 2.31).

Market definition

3.5. Considering the Parties' areas of overlap in combination with the material before it, the ACCC has considered the likely competitive effects of the Acquisition in the following markets:

- the retail supply of petrol and diesel in local markets in which the Parties both have retail sites.
- the retail supply of petrol and diesel in metropolitan-wide markets of Adelaide, Brisbane, Canberra, Melbourne, Perth and Sydney.

3.6. As noted in the ACCC's Merger Assessment Guidelines (**Guidelines**), market definition is purposive, and a tool to conduct the competitive assessment. In assessing mergers, it is generally not necessary to come to a concluded view on the relevant market or markets.[82] The market or markets that will be relevant to the ACCC's assessment will depend on the specific facts and circumstances of the merger under review.[65]

Product dimension

3.7. As identified above, there are three main fuel types used by customers of fuel retailers: RULP/E10, PULP, and diesel. There is varying demand-side substitutability between these products. Petrol and diesel products are not substitutes as vehicles are designed to use only one type of fuel. There is a degree of asymmetric substitutability between RULP/E10 and PULP, as higher-octane petrol (PULP) can be used by vehicles designed to use lower octane petrol (RULP/E10). However, the reverse is not the case as RULP/E10 is not typically suitable for vehicles designed to use PULP. [66]

3.8. From the supply-side, additional infrastructure is required to support different fuel types, requiring significant capital investment.[67] Accordingly, for retail fuel sites that

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65 ACCC, Appendix A to Merger assessment guidelines, 20 June 2025, paragraph A.11.

66 RACV, '[Petrol types explained: 91, 95, 98 and E10 differences](#)', 23 February 2026, accessed on 13 May 2026; Drive, '[Can you put 91 in your 95 or 98 car?](#)', 13 November 2023, accessed on 13 May 2026.

67 **[Redacted – Confidential]**.

do not supply a specific fuel type, switching of supply by these sites is unlikely to provide an effective and immediate constraint. However, in practice, retail fuel sites typically sell all three of these fuel types,[68] and typically face similar competitive constraints for all types of fuel. Further, the ACCC has previously observed that prices of the main grades of unleaded petrol (RULP, E10 and PULP) move in a similar manner.[69] The ACCC also understands that **[Redacted – Confidential]**.[70]

3.9. Accordingly, the ACCC considers that it is appropriate to assess the competitive effects of the Acquisition across all three fuel types for each geographic market, assessing any differences in the competitive effects on fuel types on a case-by-case basis. In this regard, the competitive effects analysis that applies to RULP/E10 for a given geographic market also applies to PULP and diesel, except where noted otherwise.[71] The exception to this approach relates to a small number of local markets in remote areas where the Acquisition impacts diesel-only sites.

Geographic dimension

3.10. In assessing mergers between two retailers, it is common to have different parameters of competition across different geographic areas. This dynamic means that a binary choice between local or broader (i.e. metropolitan-wide or national) markets when there is competitive rivalry across both areas, but in different elements and respects, may not be the most useful way to assess the competitive impacts of the acquisition. The ACCC's Guidelines state that if important aspects of competition take place at the local and aggregate levels, the ACCC may carry out an assessment at both levels.[72]

3.11. Another core principle is that market definition focuses on substitution possibilities and competitive constraints, not actual purchasing behaviour for all consumers or even a majority of consumers. That is, a local market can exist even where some consumers purchase outside of that local market.[73]

3.12. Ampol's notification to the ACCC proposed an assessment of the competitive effects of the Acquisition on a local markets basis, using up to a 5km radius in metropolitan areas and a 10km radius in regional areas.[74] Ampol subsequently submitted that a fixed radius is not suitable for assessing fuel markets and consumers who make fuel purchases are typically on the move, such that the ACCC should take into account how customers "go out of their way" to seek competitive alternatives.[75]

3.13. In addition, Ampol provided an expert economic report critiquing the use of a 3km and 5km radii, submitting that the appropriate geographic dimension of the market is

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68 Nationally, 96% of sites offer diesel (including regular and premium fuel variants) and 84% of sites offer PULP (including P95 and P98 variants). All sites offer RULP, whether as ULP or e10 fuel variants: Netwatch, accessed on 18 February 2026.

69 ACCC, '[Quarterly report on the Australian petroleum market – December quarter 2025]', 6 March 2026, Appendix D.

70 **[Redacted – Confidential]**.

71 This is consistent with the approach used in other jurisdictions, see for example UK Competition & Markets Authority, '[Anticipated merger between J Sainsbury and Asda Group: Final Report]', 25 April 2019, p 366.

72 ACCC, Merger Assessment Guidelines, 20 June 2025, paragraph 5.35.

73 See for example, *Queensland Wire Industries v BHP* (1989) 167 CLR 177 [4] and [7]; *Australian Meat Holdings v TPC* (1989) 83 ALR 299 [3].

74 Ampol notification submitted on 10 October 2025, Final Long Form Notification, pp 20-21.

75 **[Redacted – Confidential]**.

metropolitan-wide.[76] This is because retailers respond to competitors across a much larger area as consumers are able to switch across this larger area as they travel along their normal routes to work or elsewhere.[77] Ampol did not adopt this view in its submissions to the ACCC.

3.14. The ACCC has considered the Parties' submissions and had regard to evidence that suggests that competition is occurring at both the local and aggregate (or metropolitan) levels.

Local markets

3.15. The ACCC's view is that there is competition between fuel retailers at a local level. In coming to this conclusion, the ACCC gave weight to evidence that shows that:

- proximity is important to consumers when choosing where to purchase fuel.[78]
- consumers shop locally, being where consumers live or work. Ampol's internal documents, **[Redacted – Confidential]**.[79] **[Redacted – Confidential]**.[80]
- the Parties **[Redacted – Confidential]**[81] and consider local market conditions when making strategic decisions regarding site development and maintenance.[82] **[Redacted – Confidential]**.

3.16. This evidence was consistent with panel regression analysis undertaken by Frontier Economics (**Frontier**). The analysis used retail pricing data over time collated by Informed Sources as well as site-specific information for sites across Australia. Frontier constructed concentration measures within various (distance and drive time) radii of a focal site to test for a statistically significant relationship between changes in local concentration and RULP prices. This analysis indicated that there is likely to be competitive constraint on the pricing of a retail site imposed by more geographically proximate sites. In addition, the analysis found that, within metropolitan areas, the models that best fit the data were typically those that incorporated rival sites within a 3km radius.

3.17. The ACCC considers that there is strong evidence to support a conclusion that it is appropriate to consider the competitive effects of the Acquisition on the local market surrounding the EG Australia sites being acquired. In addition, while consumers do travel along their normal routes, when customers are shopping for fuel at any given time, they may only be looking at fuel sites in the area they are in and comparing against other sites close by.

3.18. The ACCC has used a 3km radius as a starting point in metropolitan areas and significant urban areas[83] and a 10km radius in regional areas to notionally define the

76 **[Redacted – Confidential]**.

77 **[Redacted – Confidential]**.

78 Australasian Convenience and Petroleum Marketers Association, '[National Monitor of Fuel Consumer Attitudes]', October 2024, pp 12-13.

79 **[Redacted – Confidential]**.

80 **[Redacted – Confidential]**.

81 **[Redacted – Confidential]**.

82 See for example, **[Redacted – Confidential]**.

83 In a small number of cases, the starting point for market definition in metropolitan areas and major urban centres was 5km as there was no overlap between the Parties in a 3km radius.

boundaries of that local market. The ACCC has then considered other distance and drive time radii, in addition to other evidence, in undertaking the competitive assessment set in out in section 5.

Metropolitan markets

3.19. The ACCC considers important aspects of competition occur across broader, metropolitan areas. In particular, evidence before the ACCC indicates that **[Redacted – Confidential]**. For example:

- Price cycles and how firms participate in those cycles is indicative of firms implementing metropolitan-wide price strategies or changes across a metropolitan area that are unrelated to individual local market conditions. **[Redacted – Confidential]**.[84]
- **[Redacted – Confidential]**.[85]
- EG Australia internally has highlighted that **[Redacted – Confidential]**.[86]

4. Future with and without the Acquisition

4.1. The ACCC has considered the effects of the Acquisition by comparing the likely future state of competition if the Acquisition proceeds against the continuation of the current state of competition (being the likely future state of competition if the Acquisition does not proceed).

4.2. On the basis of the evidence set out below, the ACCC considers that the likely future state of competition without the Acquisition in the short to medium term is the status quo, which takes into account that EG Australia may continue to close selected sites that it considers are underperforming and that Ampol is likely to continue rolling out U-GO sites organically.

Future with the Acquisition

4.3. The Parties submit that the future with the Acquisition is one where consumers have access to lower fuel prices as the Acquisition allows Ampol to accelerate the roll-out of U-GO sites by converting **[Redacted – Confidential]** EG Australia sites to unstaffed sites. Ampol also suggests that the acceleration of the U-GO strategy will enable Ampol to compete in the 'discount' segment **[Redacted – Confidential]**, which are generally **[Redacted – Confidential]**.[87]

4.4. While the ACCC accepts that the Acquisition will allow Ampol to accelerate its U-GO strategy, the evidence before the ACCC indicates that **[Redacted – Confidential]**.[88] The ACCC therefore considers that Ampol will progress with its U-GO strategy (albeit

[84] See for example, **[Redacted – Confidential]**.

[85] **[Redacted – Confidential]**.

[86] **[Redacted – Confidential]**.

[87] **[Redacted – Confidential]**.

[88] **[Redacted – Confidential]**.

at a slower rate and less broad scale) through the re-branding of Ampol sites and/or acquiring greenfield sites in the absence of the Acquisition.

4.5. To the extent that the Acquisition would lead to a greater and/or faster roll out of U-GO sites, this may lead to those converted sites offering lower prices. However, this does not necessarily imply that overall competition in the relevant market would be increased. Given Ampol's unstaffed offering and pricing approach, U-GO sites are likely to compete more closely with smaller independents than with other majors (i.e. retailers that Ampol refers to as 'Tier 1'). **[Redacted – Confidential]**.[89] This suggests that EG Australia sites often provide a more effective competitive constraint on the majors, who provide more complete retail offerings, than U-GO sites. As a result, the ACCC considers that the net impact on competition of an EG Australia site being converted to a U-GO post-acquisition will depend on the specific competitive dynamics in the relevant local market.

Future without the Acquisition

4.6. EG Australia submits that the future without the Acquisition is one in which EG Australia **[Redacted – Confidential]**.[90] **[Redacted – Confidential]**.[91]

4.7. **[Redacted – Confidential]**.[92] **[Redacted – Confidential]**.[93]

4.8. **[Redacted – Confidential]**.[94] **[Redacted – Confidential]**.[95] **[Redacted – Confidential]**.[96]

4.9. **[Redacted – Confidential]**.[97]

4.10. The ACCC has considered information and submissions from EG Australia indicating **[Redacted – Confidential]**.[98] **[Redacted – Confidential]**.

4.11. Absent the Acquisition, the ACCC also considers it unlikely that EG Australia will increase its competitiveness with respect to other fuel retailers by **[Redacted – Confidential]**. **[Redacted – Confidential]**.[99] **[Redacted – Confidential]**.[100] **[Redacted – Confidential]**.

4.12. Evidence before the ACCC indicates **[Redacted – Confidential]**.[101] While the ACCC considers that absent the Acquisition there may be appetite by other parties to acquire EG Australia, there is limited evidence before the ACCC to suggest there is a likely alternate purchaser, at least not prior to the expiry of its FSA with Ampol in 2033.

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89 See for example, **[Redacted – Confidential]**.

90 **[Redacted – Confidential]**.

91 **[Redacted – Confidential]**.

92 See for example, **[Redacted – Confidential]**.

93 **[Redacted – Confidential]**.

94 **[Redacted – Confidential]**.

95 **[Redacted – Confidential]**.

96 **[Redacted – Confidential]**.

97 **[Redacted – Confidential]**.

98 **[Redacted – Confidential]**.

99 **[Redacted – Confidential]**.

100 **[Redacted – Confidential]**.

101 **[Redacted – Confidential]**.

4.13. Given the above evidence, the ACCC largely accepts EG Australia's submissions regarding the future without the Acquisition and considers that the status quo would be likely to prevail in the short to medium term, **[Redacted – Confidential]**. **[Redacted – Confidential]**.

5. Competition assessment

5.1. When making a determination in Phase 2, the ACCC undertakes a competition assessment in which it considers whether the acquisition, if put into effect, would, in all the circumstances, have the effect, or be likely to have the effect, of substantially lessening competition in any market. In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers.

5.2. Where the ACCC is satisfied that the acquisition, if put into effect, could, in all the circumstances, have the effect of substantially lessening competition in a market, the ACCC may also consider whether any competition issues can be addressed by one or more conditions.

5.3. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's Guidelines and [interim merger process guidelines].

5.4. As set out in detail below, disregarding any conditions the ACCC could include, the Acquisition could, in all the circumstances, have the effect of substantially lessening competition in:

- The retail supply of petrol and diesel in 38 local markets in Australia and the retail supply of petrol only in one local market, where 41 EG Australia sites overlap with an Ampol site.[102]
- The retail supply of petrol in the metropolitan markets of Brisbane, Melbourne and Sydney.
- The retail supply of petrol in the metropolitan market of Canberra, which includes the Queanbeyan region.

5.5. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted by the Parties, the Parties' internal documents, the Parties' pricing and monitoring strategies and analysis, the Parties' expert reports, Informed Sources retail pricing data and Netwatch data, ACCC analysis of pricing data, regression analysis conducted by Frontier, customer visitation data, traffic routes and other local factors, drive times and information from third parties.

Competitive effects in the retail supply of petrol and diesel in local markets

5.6. The ACCC is satisfied that, disregarding any conditions the ACCC could include, the Acquisition could, in all the circumstances, have the effect of substantially lessening competition in the retail supply of petrol and diesel in 38 local markets and the retail

[102] In one local market, Gracemere, the ACCC is satisfied that, disregarding any conditions the ACCC could include, the Acquisition could, in all the circumstances, have the effect of substantially lessening competition in the retail supply of petrol only.

supply of petrol in 1 local market (Gracemere) in which 41 EG Australia sites overlap with Ampol (both Ampol Foodary and U-GO) sites. A list of the 39 local markets is at Attachment A.

5.7. This loss of competition arises from the removal of the competitive constraint between Ampol and EG Australia sites within these 39 local markets, giving rise to horizontal unilateral effects.[103] Post-acquisition, Ampol could have the ability to profitably increase the prices, and/or worsen the quality, at both its own and the former EG Australia's sites in the 39 local markets.

5.8. In assessing the competitive effects in the 39 local markets, the ACCC has had regard to the following factors:

- market shares and concentration – the number of competitors, and the concentration of local markets (which typically reflects this), affects the intensity of competition in local markets. As set out in paragraph 3.18, the ACCC's starting point for assessing market concentration was to consider a radius from the relevant EG Australia site of 3km in metropolitan areas and major regional centres, and 10km in regional areas. The ACCC also analysed drive times of 5 minutes and 10 minutes. The concentration measures for each relevant local market are at Attachment A.

- proximity, local market conditions and site characteristics of the Parties and other fuel retailers – the extent to which a retailer will directly compete with another retailer depends on geographic proximity and local market conditions. Individual site characteristics are also relevant to competition, such as the similarity in convenience store offerings or other factors such as number of pumps and forecourt size.

5.9. Having regard to the above and other material before it, the ACCC makes the following findings in respect of each of the 39 local markets:

- The Acquisition would remove a direct and significant competitor to Ampol and thereby remove the competitive constraint that the Parties currently exert on each other, having regard to geographic proximity and local market conditions.

- Post-acquisition, consumers may not necessarily consider remaining competitors as substitutes in the local market due to differences in non-fuel offerings, site facilities and location, such that those competitors do not pose an effective competitive constraint on Ampol.

- The Acquisition would substantially increase concentration in each local market.

- Barriers to entry are high, such that rival fuel retailers are unlikely to be able to enter quickly and at relatively low cost.

5.10. The ACCC sets out below the evidence that it has considered in reaching its view on the competitive effects of the Acquisition in the 39 local markets. Attachment B sets out the findings in respect of each local market.

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[103] ACCC, Merger assessment guidelines, June 2025, p 15.

Removal of a competitor

5.11. In each of the 39 local markets, the Acquisition would remove the competition between Ampol and EG Australia, with the Parties' sites often being the nearest site or the best alternative to each other for consumers having regard to location, ease of access, travel routes, traffic flows, and other local market conditions. In all 39 local markets, the ACCC has concluded that the remaining competitors[104] are unlikely to pose an effective competitive constraint on Ampol.

5.12. The ACCC considers that the more geographically proximate the Parties' sites are to each other, the more likely they compete for the same customers and to effectively constrain each other. This is because:

- proximity is important for consumers because they do not tend to drive significant distances to save a few cents per litre on fuel.[105]
- sites in close proximity are likely to be demand-side substitutes for a higher proportion of consumers (including through-traffic consumers or local residents).

5.13. As a result, for any given retail site, the more proximate competitors are to a particular site, the more likely that they are monitored closely and considered by a fuel retailer when setting the price at that site. For example, **[Redacted – Confidential]**.[106]

5.14. **[Redacted – Confidential]**.[107]

Local markets where Ampol and EG Australia sites are nearest to each other

5.15. As noted above, where the EG Australia site is nearest to the Ampol site, it is likely to impose a strong competitive constraint on the Ampol in the relevant local market. In 9 local markets, Ampol and EG Australia sites are the nearest sites to each other by distance, with competitors located further away.

5.16. The 9 markets are:

- Ambarvale: the Parties' sites are 880m apart and there is only one other competitor in the Ambarvale suburb, and only 2 competitors remain in a 5- minute drive time. Other competitors are located further away, across Appin Road.
- Belrose: the Parties' sites are the only two sites in the Belrose suburb of Sydney and are 1.3km apart. The nearest competitors to the Parties are approximately 2km further away (an 8-minute drive without traffic) in the neighbouring suburb of Forestville. Evidence before the ACCC supports that Ampol and EG Australia compete directly in this area and are unlikely to face competition from competitors in Forestville or from the prospect of new timely new entry. For example, **[Redacted – Confidential]**.[108]

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104 The number of competitors in a local market may differ from a site count as one competitor may set the price for more than one site in a local area.

105 ACAPMA Research, National Monitor of Fuel Consumer Attitudes, 2024, pp 12-13. See also **[Redacted – Confidential]**.

106 See footnote 81.

107 **[Redacted – Confidential]**.

108 **[Redacted – Confidential]**.

- Brookvale: the Parties' sites are just 160m apart on the same side of Pittwater Road, which is a major arterial through Sydney's northern beaches. The only other competitor within a 5-minute drive time on Pittwater Road is United. **[Redacted – Confidential]**. Evidence before the ACCC supports the importance of being located on Pittwater Road to being an effective competitor in this area. **[Redacted – Confidential]**.[109]

- Burpengary: the Parties' sites are 316m apart on the same side of the road for consumers travelling on Old Gympie Road into Burpengary, Queensland. Only 1 competitor remains post-acquisition in a 3km radius and 5-minute drive time. Evidence before the ACCC supports that Ampol and EG Australia compete closely in the Burpengary local market. **[Redacted – Confidential]**.[110]

- Falcon: the Parties are the only two sites in the Falcon suburb of Perth and are 310m apart. The nearest competitors to the Parties are approximately 3km away in Erskine.

- Moama: the Parties' sites are 350m apart, with only 1 other site remaining in Moama that supplies petrol.

- Mount Ommaney: the Parties' sites are approximately 1.2-1.4km apart but are still each other's nearest competitor by distance due to the dispersion of sites in this area.

- Tuggeranong/Conder: the Parties' sites are the only two sites in the Conder/Calwell area, and although are 2km away, are each other's most proximate competitor, and connected via roads. There are no other sites in the Calwell/Conder suburbs.

- Yarrawonga (Vic): the Parties' sites are 300m apart whereas other competitors' sites are further away. Evidence before the ACCC supports Ampol and EG Australia competing closely in the Yarrawonga local market. **[Redacted – Confidential]**.[111]

Local markets where Ampol and EG Australia sites are the nearest alternatives to each other

5.17. In other local markets, Ampol and EG Australia sites may not be nearest to each other by distance but factors specific to the local market mean the Parties' sites are the closest alternatives to each other. For example, these sites either:

- are located such that they serve the same traffic flows, such as being on the same side of a major arterial road, or on the same traffic route

- have similar ease of access, such as roundabouts or availability of lanes to do U-turns, and are not separated by geographic barriers, such as median strips that make U-turns difficult, national parks, waterways or beaches.

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109 **[Redacted – Confidential]**.

110 **[Redacted – Confidential]**.

111 **[Redacted – Confidential]**.

5.18. Examples of local markets where the Parties are proximate in terms of traffic flows and ease of access include:

- Kingswood: the Parties' sites are not each other's most geographically proximate competitor by distance (with two 7-Eleven sites being closer), but they are on the same side of Richmond Road/Parker Street, a major arterial road, which connects to the Greater Western Highway, with no competitors in between the two sites. Evidence before the ACCC supports that Ampol and EG Australia compete closely in the Kingswood local market. **[Redacted – Confidential]**.[112] In addition, an **[Redacted – Confidential]**. **[Redacted – Confidential]**.[113]

- Sippy Downs: the Parties' sites are not each other's most geographically proximate competitor by distance but are the only two sites in the Sippy Downs suburb and proximate to each other. They are both located adjacent to the University of Sunshine Coast, and both sitting on road that connects to the Sunshine Motorway. The other sites in the local market are in Tanawha, on Tanawha Tourist Drive.

- South Lake: the EG Australia site is most geographically proximate to the United (471m apart), which is located on the opposite side of Berrigan Drive. However, the Ampol and EG Australia sites are 1km apart and on the same side of Berrigan Drive. The Ampol and EG Australia sites are also similar in terms of ease of access and quality.

Effectiveness of remaining competitors

5.19. In many cases, remaining competitors are not as proximate or are not an alternative for customers as they are not located on the same arterial roads as the Ampol and EG Australia sites or are located more than 2 km or more than a 5-minute drive away.

5.20. In addition to the examples set out at paragraphs 5.16 (Ambarvale, Belrose, Brookvale, Falcon, Yarrawonga) and 5.18 (Kingswood), examples include:

- Port Kennedy: post-acquisition, only 2 competitors remain in the relevant local market in a 5km radius and unlike the EG Australia site, two of the sites do not have direct access from Sound Avenue.

- Gregory Hills: post-acquisition, 3 competitors will remain in a 3km radius. However, two of the competitors are both located off Gregory Hills drive.

- Campbelltown (EG Campbelltown and EG Campbelltown Mall): 4 competitors remain within a 3km radius but only 2 of these competitors are within a 5-minute drive time (without traffic).

5.21. In some local markets, the ACCC found that the site facilities of remaining competitors were such that those competitors may not be considered close substitutes by consumers. These competitors were found not to be comparable in terms of:

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112 **[Redacted – Confidential]**.

113 **[Redacted – Confidential]**.

- forecourt size or number of pumps, increasing potential wait times if servicing the same number of customers at a time.
- non-fuel offerings, such that customers cannot use fuel cards or cannot purchase the same range of convenience items.

5.22. Examples of local markets where this issue arises are:

- Moama: 4 competitors remain in the retail supply of diesel but one of these competitors, Endeavour Moama, is an unstaffed site.
- Bannockburn: 3 competitors remain, however one of these, Octane Fuels, is a smaller site co-located with a mechanic, and only has two fuel pumps, and a small convenience offering.

Market shares and concentration

5.23. As set out in the Guidelines, a merger in a concentrated market can raise competition concerns.[114] In local markets where the Acquisition removes the competition between Ampol and EG Australia, the risk of the Acquisition substantially lessening competition is more pronounced where those markets are already highly concentrated and will be more concentrated post-acquisition.

5.24. Estimated market shares based on site numbers and drive times and concentration calculations for each local market are set out at Attachment A. Using the 3km / 10km radii as a starting point, the ACCC found that in 27 local markets the Acquisition results in Ampol having a high share of sites of 40% or greater post-acquisition, which is indicative of Ampol's greater presence in that local market and fewer remaining competitors.[115]

5.25. The 27 local markets where Ampol's post-acquisition market share would be 40% or greater using a 3km radii (or 10km for regional) are as following:

- in NSW: Cranebrook, Dural, Gregory Hills, Kingswood, Ambarvale (EG Macarthur Square), Menai, Campbelltown, Woolooware, Dapto, Moama, Raymond Terrace, Tura Beach, Wyoming
- In ACT/Queanbeyan, NSW: Dickson, Queanbeyan (EG Jerrabomberra)
- in Queensland: Burpengary, Kenmore, Mount Ommaney, Gracemere (petrol only), Runaway Bay, Sippy Downs
- in Victoria: Chelsea, Mernda, Bannockburn, Yarrawonga
- in South Australia: Burton
- in Western Australia: Falcon.

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[114] ACCC, Merger Assessment Guidelines, June 2025, pp 4 and 13.

[115] In a small number of cases, the starting point for market definition in metropolitan areas and major urban centres was 5km as there was no overlap between the Parties in a 3km radius.

5.26. In all 39 local markets, the change between pre- and post-acquisition HHI is more than 200 on all relevant radii. On the basis of either a 3km radius for metropolitan or significant urban areas (**SUA**) and 10km for regional areas, 36 local markets have a post-acquisition HHI more than 2000. There are 3 local markets where the parties do not overlap within 3km but do overlap within 5km and the post-acquisition HHI are all more than 2000. As noted in the Guidelines, the ACCC considers that markets with an HHI greater than 2,000 are highly concentrated and a chance of HHI of more than 100 points is a significant increase in concentration.[116]

5.27. The ACCC acknowledges market share and HHI calculations are sensitive to the radii used, which is why it has considered concentration levels using 5km radii in metropolitan local areas, as well as 5 and 10-minute drive times in both metropolitan and regional local areas (as set out in **Attachment A**). In addition, it has undertaken a wholistic assessment of competition in these local markets having regard to other evidence regarding potential competitive constraints located beyond the specific radii used to calculate concentration measures.

Barriers to entry and expansion are high

5.28. The ACCC considers that retail fuel markets are characterised by high barriers to entry and expansion. Evidence shows that barriers are particularly high in metropolitan areas that are densely populated and well-established due to the lack of available sites to be developed (greenfield) or acquired (existing fuel sites). Timely entry is therefore unlikely to offset the loss of EG Australia in the specific local markets of concern. In addition, entry or expansion is unlikely to be timely or sufficient to provide an effective constraint on Ampol in the metropolitan markets of Brisbane, Canberra, Melbourne and Sydney.

5.29. Ampol submits that the fact that new entrants of different sizes have entered and expanded via acquiring greenfield sites and / or re-branding existing fuel retail sites demonstrates that there are no material barriers to entry or expansion in retail fuel markets.[117]

5.30. However, the ACCC considers that there are high barriers to establish a new retail fuel site through greenfield entry. In reaching this conclusion, the ACCC took into consideration **[Redacted – Confidential]** and other evidence that suggested it is difficult to purchase or lease greenfield land to develop into retail fuel sites due to the lack of availability of land in developed areas, zoning restrictions and the high cost of new site development.[118] Although one third-party submitted that the proliferation of new sites across metropolitan regions in NSW and regional NSW suggests that these do not represent substantial barriers to entry,[119] other third party submissions claim that capital requirements for land, construction and regulatory compliance are significant barriers.[120]

5.31. The ACCC accepts Ampol's submission that entry or expansion by the acquisition and rebranding of existing sites is more likely and timely as it can take place over 6-8

116 ACCC, Merger assessment guidelines, June 2025, paragraph 1.24.

117 Ampol notification submitted on 10 October 2025, Final Long Form Notification, pp 30.

118 **[Redacted – Confidential]**; See for example, **[Redacted – Confidential]**.

119 **[Redacted – Confidential]**.

120 **[Redacted – Confidential]**.

weeks as opposed to approximately 3 years for greenfield sites.[121] The ACCC also accepts that there have been examples of new entry and expansion through site acquisition. As noted in paragraph 2.26, the number of retail sites has increased from 7,500 to 8,000 in the period of 2018 to 2026. During this time, there has been significant activity by existing and new competitors acquiring and re-branding existing sites, such as BP's acquisition of X Convenience sites in 2025 and Solo Oil's acquisition of 14 Liberty sites that were divested by Viva during its acquisition of Liberty assets around late 2024 / early 2025.[122]

5.32. However, the ACCC does not consider the threat of entry or expansion through acquisition of existing sites is a material competitive constraint as it involves the loss of a competitor whose site is being re-branded and does not necessarily result in any net increase in competition. Further, entry or expansion via existing sites is dependent on such sites becoming available for purchase or lease.

Competitive effects in the retail supply of petrol in metropolitan Brisbane, Melbourne and Sydney

5.33. The ACCC identified competition concerns in the retail supply of petrol in the metropolitan markets of Brisbane, Melbourne and Sydney. In any case, the Conditions reduce the extent of aggregation brought about by the Acquisition in three metropolitan markets and that divestiture to the purchaser approved by the ACCC would facilitate the expansion of an independent retailer.

5.34. As noted above in paragraph 3.10, a horizontal acquisition may have unilateral effects across more than one geographic area if there are important elements of the way firms compete that differ across broader and narrower areas. In particular, fuel retailers may implement generalised pricing strategies or changes across a metropolitan area that are unrelated to individual local market competitive conditions, which rival retailers typically monitor and respond to when making price decisions.

5.35. While the ACCC's local markets assessment focuses on overlaps between EG Australia and Ampol sites in the immediate local area surrounding those sites, consideration of the competitive effects of the Acquisition in Brisbane, Melbourne and Sydney is focused on the broader competitive impact of Ampol's acquisition of the entirety of the EG Australia site network in each of those metropolitan markets.

5.36. In reaching its view that the Acquisition raises competition concerns in the retail supply of petrol across Brisbane, Melbourne and Sydney, and based on the material before it, the ACCC makes the following findings:

- The Acquisition doubles or nearly doubles the size of Ampol's network in each of these three metropolitan markets, making it the largest fuel retailer in Sydney, equal largest retailer in Melbourne, and second largest retailer in Brisbane;
- The Acquisition results in the loss of the large-scale, independent presence of EG Australia and its pricing strategies and tactics such that, post-acquisition, Ampol and its competitors (particularly the majors) would face fewer constraints with

[121] Ampol notification submitted on 10 October 2025, Final Long Form Notification, pp 30-31.

[122] Ampol notification submitted on 10 October 2025, Final Long Form Notification, pp 26-27, 30.

respect to their pricing decisions, or other dimensions of their competitive offering;

- Barriers to the retail supply of fuel in metropolitan areas are high, especially the entry and/or expansion of a large-scale retailer across a metropolitan area. As a result, there is unlikely to be timely, likely or sufficient entry to replace the loss of competition arising from the Acquisition.

- As outlined in **[Redacted – Confidential]**.

5.37. The ACCC sets out below the evidence that it has considered in reaching its view on the competitive effects of the Acquisition in Brisbane, Melbourne and Sydney.

Removal of a competitor with a large-scale competing network

5.38. Ampol and EG Australia are currently among the largest fuel retailers in Brisbane, Melbourne and Sydney by number of sites. The Acquisition would remove a key, independent, retail fuel network with significant scale in each of these metropolitan markets.

5.39. Ampol submits that the concentration measures indicate that the Acquisition does not raise competition concerns in Brisbane, Melbourne or Sydney.[123] However, as the site share table below show, post-acquisition, Ampol would be the second largest fuel retailer in Brisbane, the largest in Sydney and the equal largest in Melbourne, by site numbers. In Melbourne, Ampol would more than double the size of its retail network.

5.40. Network size is an important factor in these markets within the context of price cycles. This is because the metropolitan-wide footprint of some retailers can provide them with greater flexibility and/or leverage to initiate or respond to price movements during price cycle. **[Redacted – Confidential]**.[124]

5.41. As shown in Table 2, in Brisbane, Ampol operates 62 sites (approximately 12% of total sites in Brisbane) and EG Australia operates 42 sites (approximately 8% of total sites in Brisbane). Post-acquisition, Ampol would be the second largest retailer at a 21% share, with 7-Eleven with 6 more sites at 22%.

Table 2. Fuel retailers' share of sites in Brisbane as at April 2026

Fuel retailer	Site numbers	% share
Ampol	57	11%
Ampol (U-GO)	5	1%
EG Australia	42	8%
Combined share	**104**	**21%**
7-Eleven	110	22%
Viva Energy (Coles/Reddy Express + OTR + Liberty)	65	13%
BP	43	9%
BP dealers	34	7%

123 **[Redacted – Confidential]**.

124 See for example, **[Redacted – Confidential]**.

Fuel retailer	Site numbers	% share
Chevron (Caltex)	27	5%
United	20	4%
Freedom	17	3%
Chevron dealers	14	3%
Pearl	8	2%
Metro	8	2%
Viva Energy dealers	8	2%
Liberty dealers	7	1%
Other	31	6%
Total	**496**	**100%**

5.42. As shown in Table 3, in Sydney, Ampol operates 95 sites (approximately 11% of total sites in Sydney) and EG Australia operates 72 sites (approximately 9% of total sites in Sydney). Post-acquisition, Ampol would be the largest fuel retailer in Sydney at 20%, with 7-Eleven second at 17%.

Table 3. Fuel retailers' share of sites in Sydney as at April 2026

Fuel retailer	Site numbers	% share
Ampol	88	10%
Ampol (U-GO)	7	1%
EG Australia	72	9%
Combined share	**167**	**20%**
7-Eleven	141	17%
Viva Energy (Coles/Reddy Express + OTR)	105	12%
BP dealers	71	8%
BP	55	7%
Speedway dealers	48	6%
Metro Petroleum	47	6%
Metro dealers	39	5%
BP Jasbe	17	2%
United	14	2%
Viva Energy dealers	14	2%
Ampol dealers	11	1%
Pearl	7	1%
Chevron dealers	7	1%
Speedway	3	0%
Other	95	11%
Total	**841**	**100%**

5.43. As shown in Table 4, in Melbourne, Ampol operates 80 sites (approximately 8% of total sites in Melbourne) and EG Australia operates 95 sites (approximately 10% of total sites in Melbourne). Post-acquisition, Ampol would be the equal largest retailer in Melbourne with a 19% share, with Viva Energy also holding 19% and 7-Eleven holding an 18% share.

Table 4. Fuel retailers' share of sites in Melbourne as at April 2026

Fuel retailer	Site numbers	% share
Ampol	68	7%
Ampol (U-GO)	12	1%
EG	95	10%
Combined share	**175**	**19%**
Viva Energy (Coles/Reddy Express + OTR + Liberty)	176	19%
7-Eleven	170	18%
United	67	7%
BP dealers	52	6%
BP AA	48	5%
BP	37	4%
United dealers	29	3%
BP Jasbe	24	3%
Viva Energy dealers	22	2%
Metro Petroleum	15	2%
Liberty dealers	13	1%
Ampol dealers	11	1%
Chevron dealers	9	1%
Metro dealers	5	1%
Chevron (Caltex)	3	0%
Speedway	2	0%
Other	65	7%
Total	**923**	**100%**

Effectiveness of EG Australia as a competitor

5.44. The ACCC's view is that EG Australia is an effective competitor in the retail supply of petrol in Brisbane, Melbourne and Sydney, with an independent competitive pricing strategy and tactics that it rolls out across these metropolitan markets. This increases competitive tension as prices cycle up and down. Consequently, the Acquisition is likely to reduce the competitive constraint on Ampol and other major retailers who track and respond to petrol prices at Ampol and EG Australia sites across metropolitan areas.[125]

5.45. The Parties submit that EG Australia **[Redacted – Confidential]**. The Parties claim that EG Australia's **[Redacted – Confidential]**.[126] **[Redacted – Confidential]**.[127]

5.46. The ACCC considers that evidence shows that EG Australia is an effective competitor. In particular:

125 **[Redacted – Confidential]**.

126 **[Redacted – Confidential]**.

127 **[Redacted – Confidential]**.

- EG Australia has its own pricing strategy and prices independently to Ampol and other competitors. EG Australia has regularly **[Redacted – Confidential]**. **[Redacted – Confidential]**.[128]

- **[Redacted – Confidential]**.[129] **[Redacted – Confidential]**.[130]

- More recent internal documents from late 2025 indicate that EG Australia has been **[Redacted – Confidential]**.[131] However, EG Australia indicated **[Redacted – Confidential]**,[132] emphasising that market conditions in price cycling cities are constantly changing.[133] **[Redacted – Confidential]**.[134]

- **[Redacted – Confidential]**.[135] **[Redacted – Confidential]**.[136]

- The ACCC analysed Informed Sources pricing data for FY24/25 to assess if EG Australia's pricing, on average, is higher or lower than Ampol's. This analysis indicated that, in each of Brisbane, Melbourne and Sydney:

  - most major fuel retailers (Ampol, EG Australia, Chevron, Viva Energy and BP), and 7-Eleven tend to price above the market average price for RULP, while smaller independents (such as Metro Petroleum and Freedom) and United tend to price below the market average price.

  - EG Australia prices RULP, on average, lower than Ampol across both the increase and decrease phases of the price cycle.

  - EG Australia tends to have, on average, lower RULP prices than Ampol when prices across a metropolitan area are increasing, in each of Brisbane, Melbourne and Sydney.

5.47. In contrast, **[Redacted – Confidential]**.[137] **[Redacted – Confidential]**.[138] **[Redacted – Confidential]**.[139] The ACCC considers this suggests that the competitive constraint on Ampol from small independent retailers in these cities is more limited.

5.48. **[Redacted – Confidential]**.[140] In addition, **[Redacted – Confidential]**.[141] The Parties submitted that the average price differences between Ampol and EG Australia does not suggest that Ampol is being less competitive. The Parties submit that Ampol and EG Australia compete with a slightly different mix of price and non-price attributes and attract customers who have particular preferences.[142]

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128 **[Redacted – Confidential]**.

129 As outlined in paragraphs 4.6 to 4.11.

130 See for example, **[Redacted – Confidential]**.

131 See for example, **[Redacted – Confidential]**.

132 **[Redacted – Confidential]**.

133 **[Redacted – Confidential]**.

134 **[Redacted – Confidential]**.

135 **[Redacted – Confidential]**.

136 **[Redacted – Confidential]**.

137 **[Redacted – Confidential]**.

138 **[Redacted – Confidential]**.

139 **[Redacted – Confidential]**.

140 **[Redacted – Confidential]**.

141 **[Redacted – Confidential]**.

142 **[Redacted – Confidential]**.

5.49. The ACCC accepts that pricing tactics or strategies may change over time, however the ACCC considers that the FY24/25 average pricing analysis highlights how EG Australia is able to compete effectively and impose competitive pressure on the majors, as competitors monitor and respond on a metropolitan-wide basis. Pricing strategy fluctuations are demonstrated by ACCC's analysis of the first half of FY25/26, which indicates changes to Ampol and EG Australia's average pricing, with EG Australia more expensive on average in Melbourne and Sydney for this period.

5.50. Evidence from third parties regarding their perception of EG Australia's competitiveness more generally across metropolitan cities is mixed:

- One competitor observed that EG Australia's fuel prices are typically 2-3cpl below Ampol in the majority of local and metropolitan markets.[143] Another indicated that the loss of EG Australia as an independent price setter would impact competition across many markets.[144]
- When considering EG Australia's role in cities with price cycles, a number of competitors indicated that EG Australia generally follows other competitors in the price increase and decrease phases, focusing on balancing volumes and margins.[145] Another competitor indicated that similar to other major retailers, EG Australia implements price increases in areas where EG Australia does not discount much, and lags price increases in other areas.[146]
- An internal **[Redacted – Confidential]** document indicated that EG Australia is competitive throughout price cycles across Brisbane, Melbourne and Sydney.[147]

5.51. In considering the effectiveness of EG Australia as a competitor, the ACCC has also had regard to evidence from third parties regarding how they monitor and set retail fuel prices. The evidence indicates that major retailers tend to most closely monitor and respond to each other's prices and pricing strategies at a metropolitan level during price cycle phases,[148] such that EG Australia's removal could contribute to a loss of competitive pressure that goes beyond local market effects.

5.52. Taking the above evidence as a whole, and weighing it against EG Australia's **[Redacted – Confidential]** as set out at paragraphs 4.6 to 4.11, the ACCC's view is that the Acquisition raises competition concerns in Brisbane, Melbourne and Sydney. In any case, as mentioned above in paragraph 5.33, the Conditions alleviate these competition concerns.

Barriers to entry and expansion are high

5.53. As set out above in paragraphs 5.28 to 5.32, the ACCC considers retail fuel markets are characterised by high barriers to entry and expansion, particularly in metropolitan areas. New entry or expansion is unlikely to be timely or sufficient to provide an effective constraint on Ampol in the metropolitan markets of Brisbane, Canberra, Melbourne and Sydney.

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143 **[Redacted – Confidential]**.

144 **[Redacted – Confidential]**.

145 **[Redacted – Confidential]**.

146 **[Redacted – Confidential]**.

147 **[Redacted – Confidential]**.

148 **[Redacted – Confidential]**.

5.54. As noted above in paragraph 5.32, entry or expansion via existing sites is dependent on such sites becoming available for purchase or lease. Even if sites become available, timely scaled entry and expansion across a metropolitan market is only possible through the exit of a fuel retailer rather than single sites becoming available. Ampol's own plans to pursue expansion through the Acquisition, including to accelerate the roll-out of U-GO sites, demonstrates the difficulties associated with obtaining suitable sites and pursuing a scaled expansion.[149]

Competitive effects in the retail supply of petrol and diesel in Canberra

5.55. The ACCC identified competition concerns in the retail supply of petrol and diesel in Canberra as a result of the Acquisition. As noted above, the Queanbeyan suburbs are included in this assessment unless otherwise specified. In any case, the Conditions reduce the level of aggregation in Canberra and that divestiture to the purchaser approved by the ACCC would facilitate the expansion of an independent retailer.

5.56. As noted above in paragraphs 5.34 and 5.34 in respect of the ACCC's assessment of the competitive effects in Brisbane, Melbourne and Sydney, contrasted with the ACCC's local markets assessment, the ACCC's assessment of competitive effects in Canberra focused on the broader competitive impact of Ampol's acquisition of the entirety of the EG Australia site network in Canberra.

5.57. In reaching its view that the Acquisition raises competition concerns in the retail supply of petrol in Canberra, and based on the material before it, the ACCC makes the following findings:

- The Acquisition would double Ampol's market share in Canberra from 16% to 32%, making Ampol the largest retailer in Canberra.
- The Acquisition would result in the removal of EG Australia as a significant competitor, being a major retailer with scale in Canberra, with a pricing strategy or form of pricing conduct different to that of Ampol and other competitors.
- Barriers to the retail supply of fuel in metropolitan areas are high, especially the entry and/or expansion of a large-scale retailer across a metropolitan area. As a result, there is unlikely to be timely, likely or sufficient entry to replace the competitive constraint lost with the removal of EG Australia in Canberra.

5.58. As Canberra has features that may be conducive to both unilateral and coordinated conduct, the ACCC also analysed the extent to which the Acquisition could make coordination between major retailers more likely, more complete, or more sustainable by removing a major player and altering the structure of the relevant markets.[150] The ACCC finds that the removal of EG Australia and the increase in market share of Ampol in Canberra could lead to making the market more vulnerable to coordination and/or enabling coordination to become more complete or more sustainable.

5.59. Irrespective of whether the competitive effects are analysed as unilateral or coordinated effects, based on the material before it, the ACCC's view is that the Acquisition raises competition concerns in Canberra.

[149] See also **[Redacted – Confidential]**.

[150] Applications by Australia and New Zealand Banking Group Limited and Suncorp Group Limited [2024] ACompT 1 [384].

5.60. The ACCC sets out below the evidence that it has considered in reaching its view on the competitive effects of the Acquisition in Canberra.

Market shares

5.61. Post-acquisition, Ampol will become the largest fuel retailer in Canberra, with a share of supply (by site) increasing by approximately 16%, to 32% (see Table 5).

5.62. Ampol submitted that the level of concentration the Acquisition would give rise to in Canberra is insufficient to give rise to competition concerns.[151] However, Canberra has a relatively low proportion of small independent fuel retailers or other retailers that tend to have lower prices.[152]

5.63. The other major retailers, Viva, 7-Eleven and BP have shares of supply of approximately 21%, 16%, and 8% respectively, accounting for approximately 77% of the market. The Acquisition will result in a reduction in the number of major fuel retailers from five to four, being Ampol, 7-Eleven, BP and Viva Energy, with the removal of EG Australia's significant scale in Canberra in particular raising competition concerns in Canberra.

Table 5. Fuel retailer's share of sites in Canberra as at April 2026[153]

Retailer	Number of sites	Market share
Ampol	12	16%
EG Australia	12	16%
Combined share	**24**	**32%**
Viva (Coles/Reddy Express)	16	21%
7-Eleven	12	16%
BP	6	8%
Metro_IND	6	8%
BP_IND	3	4%
Ampol_IND	2	3%
Metro	2	3%
Other	2	3%
United	2	3%
Pearl	1	1%
Total	**76**	**100%**

151 **[Redacted – Confidential]**.

152 ACCC, 'Market composition through Australia's evolving petroleum industry', 11 November 2025, pp 6 and 21.

153 All retailers supply petrol and diesel. Because of its proximity to Canberra, these figures include Queanbeyan.

Parties’ pricing strategies in Canberra

5.64. In contrast to many other metropolitan cities in Australia, Canberra does not have petrol price cycles.[154] Evidence from the Parties indicate that, as a result, there are fewer day-to-day pricing decisions in Canberra.[155]

5.65. EG Australia has implemented a number of pricing tactics across Canberra, indicating it continues to compete aggressively with major retailers. For example, **[Redacted – Confidential]**.[156]

5.66. **[Redacted – Confidential]**. The ACCC considers this suggests that the competitive constraint on Ampol from small independent retailers is more limited.

5.67. While retailers can, and do, change their pricing strategies, for example in response to changes in competitive conditions, the ACCC’s view is that the evidence above supports the fact that Ampol and EG Australia compete directly with one another, both being major retailers with similar scale, operating across Canberra.

5.68. Evidence of pricing on a Canberra-wide basis by several retailers includes a period of elevated prices, and margins, from November 2024 until April 2025.[157] During this period, the RULP and PULP prices set by many retailers across Canberra rose sharply compared to Sydney terminal gate prices (indicative of wholesale costs). After these prices rose, they remained elevated above the terminal gate price until April 2025, when they returned to a level similar to early November 2024 levels.

5.69. This Canberra-wide price rise occurred after Viva Energy, currently the largest retailer in Canberra, increased its price at a selection of sites, an increase that was subsequently followed by other major fuel retailers. This occurred after two earlier instances of significant price increases by Viva Energy that were not followed by other retailers.[158]

Average price comparison between retailers in Canberra

5.70. The ACCC analysed retail pricing data in Canberra throughout FY24/25, which indicated that:

- EG Australia prices RULP, on average, slightly lower than Ampol, however the difference in average price between Ampol and EG Australia did not differ significantly over time, with the two retailers largely tracking in line with each other for most of the financial year, and

[154] See ACCC discussion of price cycles, ‘Petrol price cycles in the 5 largest cities’, accessed on 17 February 2026; **[Redacted – Confidential]**.

[155] **[Redacted – Confidential]**.

[156] **[Redacted – Confidential]**.

[157] ACCC, ‘Quarterly report on the Australian petroleum market – December quarter 2024’, 3 June 2025, p 14 to 16. Note that this wider price increase did not occur in Queanbeyan, and sites in Queanbeyan have been excluded from this specific pricing analysis.

[158] ACCC, ‘Quarterly report on the Australian petroleum market – December quarter 2024’, 3 June 2025, pp 14-16. Note that this wider price increase did not occur in Queanbeyan, and sites in Queanbeyan have been excluded from this specific pricing analysis.

- major fuel retailers Ampol, Viva Energy, and 7-Eleven tended to price above the market average price for RULP, while EG Australia, Metro and United tended to price below the market average price.

5.71. The ACCC notes that the pricing analysis conducted for the first half of FY25/26 is broadly consistent with the observations from the previous year, noting that in addition to Ampol, Viva Energy, and 7-Eleven, the pricing data indicates that EG Australia and United have tended to price above the market average price for RULP.

5.72. Ampol submitted that EG Australia is not a significant or effective competitor in Canberra,[159] highlighting the relatively small difference (0.5 cpl) in average RULP prices between Ampol and EG Australia in FY24-25, as well as the fact that the difference in daily average prices in RULP between these retailers did not differ significantly over that period.

5.73. As considered above, the ACCC accepts that pricing tactics or strategies may change over time such that the Parties' average prices may also fluctuate. The ACCC considers that the average pricing analysis highlights how EG Australia is able to compete and add to the competitive tension amongst retailers in Canberra.

Effectiveness of remaining competitors in Canberra

5.74. While a number of fuel retailers will remain post-acquisition, the ACCC considers that major retailers who are vertically integrated, as well as major independent retailers, are the most significant competitors to Ampol and EG Australia.

5.75. **[Redacted – Confidential]**.[160] **[Redacted – Confidential]**[161] **[Redacted – Confidential]**,[162] the ACCC considers this this is indicative of EG Australia's assessment of the competitive dynamics at a recent point in time.

5.76. In addition to the high concentration of major retailers, Canberra typically has higher average retail prices than the other capital cities in Australia.[163] **[Redacted – Confidential]**,[164] **[Redacted – Confidential]**.[165]

5.77. On the basis of the evidence above, the ACCC's view is that the reduction in competitors would reduce the competitive constraint on Ampol post-acquisition, and reduce the competitive constraint currently faced by the other remaining competitors in Canberra.

Barriers to entry and expansion are high

5.78. As discussed at paragraphs 5.28 to 5.32 and 5.53 to 5.54, barriers to entry and expansion in the retail supply of fuel in metropolitan markets are high. These barriers are especially high in Canberra due to the strict zoning regulations and development

[159] **[Redacted – Confidential]**.

[160] **[Redacted – Confidential]**.

[161] **[Redacted – Confidential]**.

[162] **[Redacted – Confidential]**.

[163] ACCC, 'Market composition through Australia's evolving petroleum industry', 11 November 2025, p 6.

[164] **[Redacted – Confidential]**.

[165] **[Redacted – Confidential]**.

approval processes.[166] This is evidenced by Informed Sources data, which shows that between January 2022 and June 2025, Canberra had the fewest number of new site entrants (1) out of all the Australian states (which averaged 54 new sites).[167]

5.79. In addition, one third party submitted that the retail supply of fuel in Canberra is different to other regions, in part due to higher barriers to entry.[168]

Unilateral effects

5.80. As a result of removing a rival retailer of the scale of EG Australia, and obtaining a greater share of retail sites in Canberra, Ampol could decide to alter some elements of its pricing strategy on a Canberra-wide basis.

5.81. This could arise even if the level of prices set by Ampol post-acquisition would continue to be determined largely on a site-by-site basis. That is, irrespective of any local market conditions, Ampol could nevertheless alter elements of its overall approach to pricing across the city. For example, Ampol could become less aggressive in its pricing by being slower to reduce prices across its Canberra sites after a cost reduction and/or faster to increase prices after a cost increase.

Coordinated effects

5.82. The ACCC considers that the removal of EG Australia and the increase in market share of Ampol in Canberra could make the market more vulnerable to coordination or enable coordination to become more complete or more sustainable.[169] To the extent coordinated effects were to arise, these are likely to be larger than, and effectively subsume, any unilateral effects.[170]

5.83. There are a number of factors that influence how susceptible a market is likely to be to coordination.[171] The ACCC finds that many of the factors that make a market conducive to coordination exist in Canberra. In particular:

- barriers to entry and expansion – as set out above, barriers to entry and expansion are high in the Canberra metropolitan market, particularly due to relatively stringent zoning restrictions.

- cost symmetry between fuel retailers – this makes coordination easier to initiate and sustain, primarily because it is easier for firms to reach a common understanding on the coordinated price. Given the relative similarity in retail site offerings across Canberra, including because the large majority of retailers in Canberra are majors and there are significantly fewer smaller independents, retailing costs are likely to be relatively similar.

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166 **[Redacted – Confidential]**.

167 Ampol notification submitted on 10 October 2025, Final Long Form Notification, p 28; **[Redacted – Confidential]**.

168 **[Redacted – Confidential]**.

169 Applications by Australia and New Zealand Banking Group Limited and Suncorp Group Limited [2024] ACompT 1 [384].

170 Applications by Australia and New Zealand Banking Group Limited and Suncorp Group Limited [2024] ACompT 1 [373].

171 See for example, George J Stigler, 'A theory of oligopoly', *Journal of Political Economy*, vol 72, no 1, 1964, pp 44-46; Edward J Green, and Robert H Porter, 'Non-cooperative collusion under imperfect price information', *Econometrica*, vol 52, no 1, 1984, pp 87-100; Marc Ivaldi et al., 'The economics of horizontal mergers: Unilateral and Coordinated effects', *Report for DG Competition, European Commission*, 2003.

- low industry demand elasticity – this increases the profitability of coordination. The demand for retail fuel is likely to be relatively inelastic in the Canberra metropolitan market.

5.84. In addition, there are other factors that exist across fuel markets more generally that are typically considered to raise the risk of coordinated effects, such as:

- product homogeneity – while there is product differentiation in respect of fuel retailers' overall offerings, each of the various grades of petrol and diesel is homogeneous and most retailers supply the different grades.
- price transparency – the level of price transparency is high. Prices are made available to retailers through the Informed Sources, near real time service. Prices are also available to consumers through a data service as well as available on price boards at sites.
- frequency and size of transactions – along with price transparency, this facilitates monitoring of the coordinated outcome, enables the detection of firms that deviate from this outcome and allows for a timely retaliation to deviating firms.
- multi-market contact – fuel retailers are active across many different markets in Australia – including other metropolitan markets, larger regional markets as well as local markets.

5.85. In Canberra specifically, in combination with the above factors, the Acquisition would make it easier for coordinated outcomes to arise by:

- reducing the number of independent retailers, reducing the strategic uncertainty faced by the remaining retailers.[172]
- making Ampol the largest retailer in Canberra, thus increasing Ampol's incentive to facilitate or engage in coordinated outcomes.[173]

6. Competitive effects in other markets

Local markets

6.1. The NOCC identified 51 local markets where its preliminary assessment was the Acquisition would have the effect or be likely to have the effect of substantially lessening competition, and 20 local markets where it was continuing to consider whether the Acquisition would have the effect or be likely to have the effect of substantially lessening competition.

6.2. Following further assessment of these local markets, the ACCC's view is that the Acquisition would be unlikely to substantially lessen competition in 31 of these local markets. In each of these local markets:

172 Applications by Australia and New Zealand Banking Group Limited and Suncorp Group Limited [2024] ACompT 1 [387].

173 George J Stigler, 'A theory of oligopoly', *Journal of Political Economy*, vol 72, no 1, 1964, pp. 44-46. Nicolas de Roos, 'Framework for assessing coordinated effects', April 5 2023.

- market shares by sites post-acquisition are less than 40% and there is no material impact on concentration
- the Parties’ sites are not the most geographically proximate to each other
- remaining competitors would constrain Ampol post-acquisition in local markets.

Metropolitan markets

6.3. The ACCC’s view is that the Acquisition would not have the effect or be likely to have the effect of substantially lessening competition in the retail supply of petrol in the metropolitan markets of:

- Adelaide and Perth, as a result of either unilateral effects or coordinated effects
- Brisbane, Melbourne and Sydney, as a result of coordinated effects.

6.4. While the Acquisition may lessen competition in Adelaide and Perth because of unilateral effects, the ACCC considers that any lessening of competition in these markets is unlikely to be substantial. This is because of the relatively modest increase in concentration which would arise from the Acquisition. Ampol’s post-acquisition share of sites would increase by approximately 5% to 16% and 18% in each of Adelaide and Perth respectively, along with the continued constraint from remaining competitors. For example, in Adelaide, Viva Energy would remain the largest retailer in the metropolitan area, with a share of supply of almost 40% by number of sites. In Perth, remaining retailers would continue to constrain Ampol, including independent retailers with a strong presence such as Vibe.

6.5. While the Acquisition may lessen competition by making the metropolitan markets of Adelaide, Brisbane, Melbourne, Perth, and Sydney more vulnerable to coordination or by enabling coordination to become more complete or more sustainable, the ACCC considers that any lessening of competition in this context is unlikely to be substantial. This is because of a combination of several factors, including the number and characteristics of remaining rivals, in particular independent retailers, along with the specific characteristics of the Parties in each of these metropolitan areas.

7. Conditions

7.1. The ACCC must not include conditions unless it is satisfied that, disregarding any conditions the ACCC could include, the acquisition, if put into effect, could, in all the circumstances, have the effect of substantially lessening competition in any market.

7.2. The ACCC must have regard to all relevant matters, and may have regard to the effect on the interests of consumers that compliance with the conditions would have, or be likely to have, or any consumer benefits that would result, or be likely to result from compliance with the conditions.

7.3. It is a contravention of section 45AZ of the Act for a person to put the Acquisition into effect and to not comply with any conditions. Where a person does not comply with conditions, the Federal Court may make orders including, in some circumstances, divestiture or a declaration that the acquisition is void.

Summary of the Conditions

7.4. As set out above, the ACCC is satisfied that, disregarding any conditions the ACCC could include, the Acquisition could, in all the circumstances, have the effect of substantially lessening competition in the retail supply of fuel in 39 local markets in Australia, where 41 EG Australia sites overlap with an Ampol site.[174] To address this, the ACCC has decided to include the Conditions in its Determination.

7.5. The Conditions are capable of resolving the competition issues in respect of the 39 local markets as they require Ampol Limited to:

- ensure that the Divestiture Business of 41 specified Ampol and EG retail fuel sites is sold to a purchaser approved by the ACCC that will result in the creation or strengthening of a viable, effective, stand-alone, independent and long-term competitor in relevant markets, and
- give and comply with the Undertaking, that also requires Ampol Limited to:
  - ensure the purchaser of the Divestiture Business has all the necessary associated assets and rights to compete effectively with Ampol in the relevant markets
  - maintain the economic viability, marketability, competitiveness and goodwill of the businesses being divested prior to divestiture, and
  - provide for the effective oversight of Ampol Limited's compliance with the Undertaking.

7.6. The Conditions incorporate a remedy offer Ampol made to the ACCC on 22 April 2026, with some changes that the ACCC considered appropriate including to reflect the ACCC's approval of a purchaser.

7.7. Accordingly, the ACCC has determined that the Acquisition may be put into effect subject to the Conditions. This is explained further below.

Assessment with the Conditions

The Conditions addresses the competition concerns in local markets

7.8. The Conditions preserve choice for consumers and address the competition concerns set out above by:

- in 25 relevant local markets, removing the competitive overlap between Ampol and EG Australia
- in 14 relevant local markets, reducing Ampol's post-acquisition share
- in all 39 markets, through the divestiture to the purchaser approved by the ACCC, facilitating the entry or expansion of an independent competitor.

[174] There is one local market, Gracemere, the ACCC is satisfied that, disregarding any conditions the ACCC could include, the Acquisition could, in all the circumstances, have the effect of substantially lessening competition in the retail supply of petrol only.

The Conditions can be effectively implemented

7.9. The ACCC has also taken account of whether there are risks associated with implementation of the Conditions that may limit the effectiveness of the Conditions in addressing the competition issues. The ACCC considers the Conditions can be effectively implemented.

Composition of the Divestiture Business

7.10. The ACCC considers that the Divestiture Business is appropriately configured to ensure it can be separated from the combined entity's business, and that a suitable purchaser may operate it effectively.

Emergence of an appropriate purchaser

7.11. The ACCC considers there are suitable purchasers are available to support a timely and effective divestiture, and that the Undertaking includes obligations to prevent Ampol attempting to dispose of assets piecemeal or to an inappropriate purchaser (including by only permitting divestiture to an ACCC-approved purchaser).

7.12. The ACCC has decided to approve Dib Group (Metro Petroleum) as Approved Purchaser of the Divestiture Business. In making its decision the ACCC had regard to:

- the Undertaking,
- a Proposed Purchaser Notice, including associated transaction documents,
- submissions, responses to information requests and correspondence from Ampol and Dib Group, and
- Information obtained during the ACCC's assessment of the Acquisition, including third-party submissions.

7.13. In approving Dib Group as the Approved Purchaser, the ACCC had regard to the factors outlined at clause 6.7 of the Undertaking, and considers that:

- the draft asset sale agreement is consistent with the Undertaking.
- Dib Group will complete the transaction as contemplated by the draft asset sale agreement.
- Dib Group is independent of Ampol.
- Dib Group is of good financial standing.
- Dib Group has a history of competition law compliance.
- Dib Group has an intention to maintain and operate the Divestiture Business as a going concern.
- Dib Group is able to conduct the Divestiture Business effectively.

- divestiture to Dib Group will address the competition concerns identified in respect of the Acquisition.

Integrity of the Divestiture Business and other considerations

7.14. The ACCC considers that the integrity of the Divestiture Business will be protected prior to divestiture, and took account of other considerations related to the effective implementation of the Conditions. The Undertaking is substantially in the ACCC's standard form and provides for comprehensive obligations, including:

- Divestiture Business Protection obligations on Ampol,
- appointment of an ACCC-approved independent manager to manage the Divestiture Business prior to divestiture, and
- appointment of an ACCC-approved independent auditor to monitor and report on compliance with the Undertaking.

7.15. The ACCC considers that any risk that divestiture will be frustrated, for example, due to third-party consents and renewals, is appropriately managed by the Undertaking.

Attachment A – Concentration measures

The total number of site in a local market was calculated by identifying sites within the radius or drive time. Site numbers and information was obtained from Informed Sources' NetWatch and drive time estimates were obtained using the Azure Maps API. Sites with the same brand but with different operators are treated as different competitors. Post-acquisition site shares were then calculated by dividing the number of Ampol and EG Australia sites post-acquisition by the number of total sites within the given radius or drive time. Shares for diesel and petrol were calculated separately. The ACCC considered shares of supply by volume in local markets for which it had complete volume information and found shares of supply by volume were generally consistent with shares of supply by site numbers. Given this and as the ACCC did not have complete volume information for all local markets, shares of supply by site numbers are relied on.

Pre and post-acquisition shares of supply by sites in the relevant local markets (excluding divestitures)

				3km		5km		10km (regional only)		5 minute drive time		10 minute drive time	
Site ID	**Site Name**	**State**	**Classification**	**Pre**	**Post**	**Pre**	**Post**	**Pre**	**Post**	**Pre**	**Post**	**Pre**	**Post**
61201506	**EG Dickson**	**ACT**	**Metro**	14%	43%	18%	36%	N/A	N/A	-	-	18%	36%
61260262 61201064	**EG Tuggeranong** **EG Conder**[175]	**ACT**	**Metro**	-	-	22%	56%	N/A	N/A	-	-	17%	50%
61205389	**EG Brookvale**	**NSW**	**Metro**	25%	31%	26%	32%	N/A	N/A	29%	43%	24%	29%
61291395	**EG Cranebrook**	**NSW**	**Metro**	33%	56%	25%	44%	N/A	N/A	50%	75%	20%	35%
61202062	**EG Dural**	**NSW**	**Metro**	20%	40%	25%	38%	N/A	N/A	20%	40%	22%	33%
61291426	**EG Gregory Hills**	**NSW**	**Metro**	17%	50%	13%	44%	N/A	N/A	25%	50%	11%	44%
61201524	**EG Kingswood**	**NSW**	**Metro**	31%	46%	17%	30%	N/A	N/A	-	-	14%	28%
61201510	**EG Macarthur Square**	**NSW**	**Metro**	20%	50%	8%	31%	N/A	N/A	20%	60%	10%	30%
61201718	**EG Menai**	**NSW**	**Metro**	33%	67%	20%	40%	N/A	N/A	33%	67%	13%	25%
61291041 61291058	**EG Narellan** **EG Spring Farm**[176]	**NSW**	**Metro**	11%	33%	19%	50%	N/A	N/A	17%	33%	18%	41%

175 Using EG Tuggeranong as the centroid site.

176 Using EG Narellan as the centroid site.

				3km		5km		10km (regional only)		5 minute drive time		10 minute drive time	
Site ID	Site Name	State	Classification	Pre	Post	Pre	Post	Pre	Post	Pre	Post	Pre	Post
61201466	**EG Campbelltown**	**NSW**	**Metro**	20%	50%	8%	31%	N/A	N/A	33%	67%	6%	29%
61205374	**EG Glenrose**	**NSW**	**Metro**	14%	29%	18%	27%	N/A	N/A	50%	100%	25%	38%
61291571	**EG Oran Park**	**NSW**	**Metro**	-	-	17%	50%	N/A	N/A	-	-	13%	63%
61202389	**EG Woolooware**	**NSW**	**Metro**	25%	42%	21%	36%	N/A	N/A	-	-	17%	33%
61205442	**EG Tura Beach**	**NSW**	**Regional**	N/A	N/A	N/A	N/A	20%	40%	33%	67%	25%	50%
61201457	**EG Dapto**	**NSW**	**SUA**	20%	40%	17%	33%	N/A	N/A	20%	40%	18%	29%
61202402	**EG Jerrabomberra**	**NSW**	**SUA**	33%	67%	18%	45%	N/A	N/A	33%	67%	19%	38%
61205399	**EG Moama – petrol**	**NSW**	**SUA**	25%	75%	18%	36%	N/A	N/A	25%	50%	17%	33%
61205399	**EG Moama - diesel**	**NSW**	**SUA**	20%	60%	13%	27%	N/A	N/A	20%	40%	12%	24%
61201472	**EG Raymond Terrace**	**NSW**	**SUA**	33%	50%	20%	30%	N/A	N/A	33%	67%	29%	43%
61201684	**EG Wyoming**	**NSW**	**SUA**	29%	57%	31%	44%	N/A	N/A	20%	60%	27%	40%
61402223	**EG Burpengary**	**QLD**	**Metro**	25%	50%	20%	30%	N/A	N/A	33%	67%	14%	21%
61401551	**EG Kenmore**	**QLD**	**Metro**	20%	40%	17%	33%	N/A	N/A	20%	40%	25%	42%
61402398	**EG Mount Ommaney**	**QLD**	**Metro**	33%	50%	16%	32%	N/A	N/A	-	-	29%	36%
61478220	**EG Ripley South**	**QLD**	**Regional**	N/A	N/A	20%	40%	17%	33%	-	-	9%	27%
61402855	**EG Childers**	**QLD**	**Regional**	N/A	N/A	20%	40%	17%	33%	-	-	17%	33%
61402881	**EG Gracemere - petrol**	**QLD**	**SUA**	25%	50%	25%	50%	N/A	N/A	25%	50%	20%	30%
61401023	**EG Runaway Bay**	**QLD**	**SUA**	43%	57%	10%	25%	N/A	N/A	20%	40%	17%	25%
61402419	**EG Sippy Downs**	**QLD**	**SUA**	25%	50%	13%	38%	N/A	N/A	-	-	8%	23%
61477079	**EG Warana**	**QLD**	**SUA**	13%	38%	17%	33%	N/A	N/A	17%	33%	19%	44%
61501989	**EG Burton**	**SA**	**Metro**	40%	60%	19%	31%	N/A	N/A	-	-	17%	28%
61303072	**EG Chelsea**	**VIC**	**Metro**	20%	60%	25%	38%	N/A	N/A	-	-	8%	23%
61303675	**EG Melton Gateway**	**VIC**	**Metro**	20%	30%	14%	36%	N/A	N/A	33%	50%	13%	31%
61303702	**EG Mernda**	**VIC**	**Metro**	25%	50%	17%	33%	N/A	N/A	33%	67%	11%	22%

				3km		5km		10km (regional only)		5 minute drive time		10 minute drive time	
Site ID	Site Name	State	Classification	Pre	Post	Pre	Post	Pre	Post	Pre	Post	Pre	Post
61302711	EG Mornington East	VIC	Metro	11%	33%	20%	40%	N/A	N/A	33%	67%	18%	36%
61303620	EG Bannockburn	VIC	Regional	N/A	N/A	N/A	N/A	20%	40%	33%	67%	25%	50%
61370085	EG Yarrawonga	VIC	Regional	N/A	N/A	N/A	N/A	25%	50%	25%	50%	17%	33%
61602136	EG Falcon	WA	Metro	33%	67%	50%	75%	N/A	N/A	50%	100%	43%	57%
61602123	EG Port Kennedy	WA	Metro	N/A	N/A	17%	50%	N/A	N/A	-	-	17%	33%
61601238	EG South Lake	WA	Metro	27%	36%	19%	24%	N/A	N/A	22%	33%	17%	20%

Pre and post-acquisition HHIs in the relevant local markets (excluding divestitures)

				3km		5km		10km (regional only)		5-minute drive time		10-minute drive time	
Site ID	Site Name	State	Classification	Post HHI	Delta	Post HHI	Delta	Post HHI	Delta	Post HHI	Delta	Post HHI	Delta
61201506	EG Dickson	ACT	Metro	3061	816	2231	661	N/A	N/A	-	-	2231	661
61260262 61201064	EG Tuggeranong EG Conder[177]	ACT	Metro	-	-	3827	1481	N/A	N/A	-	-	3194	1111
61205389	EG Brookvale	NSW	Metro	1797	313	1634	277	N/A	N/A	2653	816	1429	227
61291395	EG Cranebrook	NSW	Metro	4321	1481	3906	937	N/A	N/A	6250	2500	2650	600
61202062	EG Dural	NSW	Metro	2800	800	2188	625	N/A	N/A	2800	800	1852	494
61291426	EG Gregory Hills	NSW	Metro	3333	1111	2578	781	N/A	N/A	3750	1250	2593	741
61201524	EG Kingswood	NSW	Metro	3728	947	2968	454	N/A	N/A	-	-	2438	381
61201510	EG Macarthur Square	NSW	Metro	2663	474	2000	500	N/A	N/A	4400	1600	2200	400
61201718	EG Menai	NSW	Metro	5556	2223	3600	800	N/A	N/A	5556	2223	2813	313
61291041 61291058	EG Narellan EG Spring Farm	NSW	Metro	2099	494	2969	1172	N/A	N/A	2778	556	2388	831
61201466	EG Campbelltown	NSW	Metro	3200	1200	1450	355	N/A	N/A	5556	2223	1759	292
61205374	EG Glenrose	NSW	Metro	2245	408	1736	331	N/A	N/A	10000	5000	2500	625

[177] Using EG Tuggeranong as the centroid site.

				3km		5km		10km (regional only)		5-minute drive time		10-minute drive time	
Site ID	Site Name	State	Classification	Post HHI	Delta	Post HHI	Delta	Post HHI	Delta	Post HHI	Delta	Post HHI	Delta
61291571	**EG Oran Park**	**NSW**	**Metro**	-	-	3333	1111	N/A	N/A	-	-	4375	1250
61202389	**EG Woolooware**	**NSW**	**Metro**	2639	833	2143	612	N/A	N/A	-	-	2083	555
61205442	**EG Tura Beach**	**NSW**	**Regional**	N/A	N/A	N/A	N/A	2800	800	5556	2223	3750	1250
61201457	**EG Dapto**	**NSW**	**SUA**	2800	800	2778	556	N/A	N/A	2800	800	1834	415
61202402	**EG Jerrabomberra**	**NSW**	**SUA**	5556	2223	2727	991	N/A	N/A	5556	2223	1953	703
61205399	**EG Moama – petrol**	**NSW**	**SUA**	6250	2500	2066	661	N/A	N/A	3750	1250	1944	555
61205399	**EG Moama - diesel**	**NSW**	**SUA**	4400	1600	1556	356	N/A	N/A	2800	800	1557	277
61201472	**EG Raymond Terrace**	**NSW**	**SUA**	3333	1111	1800	400	N/A	N/A	5556	2223	2653	816
61201684	**EG Wyoming**	**NSW**	**SUA**	3878	1633	2578	781	N/A	N/A	4400	1600	2267	711
61402223	**EG Burpengary**	**QLD**	**Metro**	5000	1250	2400	400	N/A	N/A	5556	2223	1939	204
61401551	**EG Kenmore**	**QLD**	**Metro**	2800	800	1944	555	N/A	N/A	2800	800	2500	833
61402398	**EG Mount Ommaney**	**QLD**	**Metro**	3889	1111	1828	498	N/A	N/A	-	-	2245	408
61478220	**EG Ripley South**	**QLD**	**Regional**	N/A	N/A	3600	800	3889	556	-	-	1901	331
61402855	**EG Childers**	**QLD**	**Regional**	N/A	N/A	2800	800	2800	800	-	-	2222	555
61402881	**EG Gracemere**	**QLD**	**SUA**	3750	1250	3750	1250	N/A	N/A	3750	1250	2245	408
61401023	**EG Runaway Bay**	**QLD**	**SUA**	3878	1225	1250	300	N/A	N/A	2800	800	1875	278
61402419	**EG Sippy Downs**	**QLD**	**SUA**	3750	1250	2188	625	N/A	N/A	-	-	1834	236
61477079	**EG Warana**	**QLD**	**SUA**	2188	650	1944	555	N/A	N/A	2222	555	2422	938
61501989	**EG Burton**	**SA**	**Metro**	4400	1600	3828	469	N/A	N/A	-	-	3765	370
61303072	**EG Chelsea**	**VIC**	**Metro**	4400	1600	2813	625	N/A	N/A	-	-	1479	236
61303675	**EG Melton Gateway**	**VIC**	**Metro**	2800	400	2653	612	N/A	N/A	3333	1111	2344	469
61303702	**EG Mernda**	**VIC**	**Metro**	3750	1250	2222	555	N/A	N/A	5556	2223	1605	247
61302711	**EG Mornington East**	**VIC**	**Metro**	2593	494	2800	800	N/A	N/A	5556	2223	2397	661
61303620	**EG Bannockburn**	**VIC**	**Regional**	N/A	N/A	N/A	N/A	3750	1250	5556	2223	3750	1250
61370085	**EG Yarrawonga**	**VIC**	**Regional**	N/A	N/A	N/A	N/A	2778	556	3750	1250	2222	555
61602136	**EG Falcon**	**WA**	**Metro**	5556	2223	6250	2500	N/A	N/A	10000	5000	4286	1225

				3km		5km		10km (regional only)		5-minute drive time		10-minute drive time	
Site ID	Site Name	State	Classification	Post HHI	Delta	Post HHI	Delta	Post HHI	Delta	Post HHI	Delta	Post HHI	Delta
61602123	**EG Port Kennedy**	**WA**	**Metro**	-	-	3333	1111	N/A	N/A	-	-	1944	555
61601238	**EG South Lake**	**WA**	**Metro**	2231	495	1474	181	N/A	N/A	2346	494	1333	111

Attachment B – Relevant factors for each local market

Site ID	EG Australia Site Name	State	Classification	Local market	Nearest Ampol site	Distance between the merger parties' sites	Removes geographically proximate competitor	Post-acquisition market share >40% / HHI >2000 with delta of 200+	Remaining competitors within 3km/10km radius[178]
61201064 **61260262**	**EG Conder** **EG Tuggeranong**	ACT	Metro	Tuggeranong	Ampol Foodary Calwell	3.2km 4.52km	✓	✓	3[179]
61201506	**EG Dickson**	ACT	Metro	Dickson	Ampol Foodary Braddon	2.3km		✓	3
61205389	**EG Brookvale**	NSW	Metro	Brookvale	Ampol Foodary Brookvale	0.2km	✓	✓	10
61291395	**EG Cranebrook**	NSW	Metro	Cranebrook	Ampol Foodary Penrith (Castlereagh Rd)	1.2km		✓	2

178 The number of competitors in a local market may differ from a site count as one competitor may set the price for more than one site in a local area.

179 Number of competitors within 5km radius. Ampol and EG do not overlap in a 3km radius.

Site ID	EG Australia Site Name	State	Classification	Local market	Nearest Ampol site	Distance between the merger parties' sites	Removes geographically proximate competitor	Post-acquisition market share >40% / HHI >2000 with delta of 200+	Remaining competitors within 3km/10km radius[178]
61202062	**EG Dural**	NSW	Metro	Dural	Ampol Foodary Dural	1.4km		✓	3
61291426	**EG Gregory Hills**	NSW	Metro	Gregory Hills	Ampol Foodary Gregory Hills	1.4km		✓	3
61201524	**EG Kingswood**	NSW	Metro	Kingswood	Ampol Foodary Cambridge Park	1.6km	✓	✓	3
61201510	**EG Macarthur Square**	NSW	Metro	Ambarvale	Ampol Foodary Ambarvale	0.9km	✓	✓	5
61201718	**EG Menai**	NSW	Metro	Menai	Ampol Foodary Menai	0.3km		✓	1
61291041 61291058	**EG Narellan** **EG Spring Farm**	NSW	Metro	Narellan	Ampol Foodary Narellan	0.7km 3.44km		✓	5
61201466	**EG Campbelltown**[180]	NSW	Metro	Campbelltown	Ampol Foodary Leumeah	1.8km		✓	4
61205374	**EG Glenrose**	NSW	Metro	Belrose	Ampol Foodary Belrose	1.3km	✓	✓	4
61291571	**EG Oran Park**	NSW	Metro	Oran Park	Ampol Foodary Narellan	4.4km		✓	3[181]
61202389	**EG Woolooware**	NSW	Metro	Woolooware	Ampol Foodary Woolooware	1.6km		✓	4

[180] EG Campbelltown Mall is the site being divested in the Campbelltown local market

[181] Number of competitors within 5km radius. Ampol and EG do not overlap in a 3km radius.

Site ID	EG Australia Site Name	State	Classification	Local market	Nearest Ampol site	Distance between the merger parties' sites	Removes geographically proximate competitor	Post-acquisition market share >40% / HHI >2000 with delta of 200+	Remaining competitors within 3km/10km radius[178]
61205442	**EG Tura Beach**	NSW	Regional	Tura Beach	Ampol Foodary Merimbula	2.7km		✓	3
61201457	**EG Dapto**	NSW	SUA	Dapto	Ampol Foodary Brownsville	1.4km		✓	3
61202402	**EG Jerrabomberra**	NSW	SUA	Jerrabomberra	Ampol Foodary Queanbeyan (Lanyon Drive)	2km		✓	1
61205399	**EG Moama**	NSW	SUA	Moama	Ampol Foodary Moama	0.3km	✓	✓	2 (1 diesel only)
61201472	**EG Raymond Terrace**	NSW	SUA	Raymond Terrace	U-Go Raymond Terrace (Unmanned)	0.6km		✓	3
61201684	**EG Wyoming**	NSW	SUA	Wyoming	Ampol Foodary Wyoming	0.6km		✓	3
61402223	**EG Burpengary**	QLD	Metro	Burpengary	Ampol Foodary Burpengary	0.3km		✓	1
61401551	**EG Kenmore**	QLD	Metro	Kenmore	Ampol Foodary Kenmore	0.8km		✓	3
61402398	**EG Mount Ommaney**	QLD	Metro	Mount Ommaney	Ampol Foodary Sumner Park	1.3km	✓	✓	2
61478220	**EG Ripley South**	QLD	Regional	Ripley South	Ampol Foodary Ripley	4.4km		✓	2
61402855	**EG Childers**	QLD	Regional	Childers	Ampol Foodary Apple Tree Creek	2km		✓	3

Site ID	EG Australia Site Name	State	Classification	Local market	Nearest Ampol site	Distance between the merger parties' sites	Removes geographically proximate competitor	Post-acquisition market share >40% / HHI >2000 with delta of 200+	Remaining competitors within 3km/10km radius[178]
61402881	**EG Gracemere**	QLD	SUA	Gracemere	Ampol Foodary Gracemere	0.1km		✓	2
61401023	**EG Runaway Bay**	QLD	SUA	Runaway Bay	Ampol Foodary Coombabah	1.3km		✓	3
61402419	**EG Sippy Downs**	QLD	SUA	Sippy Downs	Ampol Foodary Sippy Downs	2.1km	✓	✓	2
61477079	**EG Warana**	QLD	SUA	Warana	Ampol Kawana Waters Diesel Stop	1km		✓	4
61501989	**EG Burton**	SA	METRO	Burton	Ampol Foodary Bolivar Gardens	2.4km		✓	2
61303072	**EG Chelsea**	Vic	METRO	Chelsea	Ampol Foodary Chelsea Heights	2.5km		✓	2
61303675	**EG Melton Gateway**	Vic	METRO	Melton	Ampol Foodary Melton	0.4km		✓	3
61303702	**EG Mernda**	Vic	METRO	Mernda	Ampol Foodary Mernda	1.8km		✓	2
61302711	**EG Mornington East**[182]	Vic	METRO	Mornington	Ampol Foodary Mornington	1.6km		✓	3
61303620	**EG Bannockburn**	Vic	REGIONAL	Bannockburn	Ampol Foodary Bannockburn	2.3km	✓	✓	2
61370085	**EG Yarrawonga**	Vic	REGIONAL	Yarrawonga	Ampol Foodary Yarrawonga	0.3km	✓	✓	3

182 EG Mornington is the site being divested in the Mornington local market.

Site ID	EG Australia Site Name	State	Classification	Local market	Nearest Ampol site	Distance between the merger parties' sites	Removes geographically proximate competitor	Post-acquisition market share >40% / HHI >2000 with delta of 200+	Remaining competitors within 3km/10km radius[178]
61602136	**EG Falcon**	WA	METRO	Falcon	Ampol Foodary Falcon (Miami Beach)	0.3km	✓	✓	1
61602123	**EG Port Kennedy**	WA	METRO	Port Kennedy	Ampol Foodary Secret Harbour	3.7km	✓	✓	3[183]
61601238	**EG South Lake**	WA	METRO	South Lake	Ampol Foodary South Lake	1.1km	✓	✓	5

183 Number of competitors within 5km radius. Ampol and EG do not overlap in a 3km radius.